MICRO ENTERPRISE LOAN AGREEMENT

DCB BANK

MICRO ENTERPRISE LOAN AGREEMENT

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Borrower

Date:	Borrower's Address:
Borrower's Name:	

This Loan Agreement ("Agreement") is executed by the Borrower on the date stated above.
WITNESSETH THAT
In consideration of the Bank having granted / agreed to the Borrower the Loan on the terms and conditions in this Agreement including its Schedule, the Borrower agrees as follows:

1. DEFINITION

In this Agreement, the following capitalized words shall have the following meanings:

1.1 Bank means DCB Bank Limited, a Banking Company incorporated under the Companies Act, 1956 (CIN: L99999MH1995PLC089008) and deemed to exist within the meaning of Companies Act, 2013, having its Registered Office at 6th Floor, Tower A, Peninsula Business Park, Senapati Bapat Marg, Lower Parel, Mumbai – 400 013 and a branch / office amongst other place as mentioned in the Schedule hereto (the expression the "Bank" or "DCB Bank" shall, unless the context otherwise requires, be deemed to mean and include its successors and assigns).

1.2 Borrower means an individual(s) whose name is stated above as Borrower availing of the Loan from the Bank in the terms hereof and such individual(s) being one or more individual(s) such individual and each one of them when more than one are deemed to have made this Agreement individually and all of them agreed to obligations hereunder jointly and severally and the term Borrower shall include heirs, executors, administrators, legal representatives, successors and permitted assigns of each one of them.

1.3 Defaulter List means any list published by Reserve Bank of India (RBI), Credit Information Bureau (India) Limited (CIBIL) or any other credit bureau or authority under law or regulation indicating persons in or connected with default, irregularity or violation of any kind.

1.4 Loan means the Micro Enterprise loan granted / agreed to be granted by the Bank to the Borrower as specified in this Agreement.

1.5 Person shall include one or more individual(s), a partnership firm, an association, a trust, a HUF or any other entity.

1.6 Schedule shall mean the schedule at the bottom of this Agreement as amended from time to time.

1.7 Insurance Company' means the insurance company through whom the Borrower applies and takes the Loan Protect Policy;

1.8 'Loan Protect Policy' means policy taken by the Borrower in respect of which DCB Bank, at the request of the Borrower, has disbursed / agreed to disburse the insurance premium towards the policy as set out in the Schedule hereto.

2. BORROWER'S REPRESENTATIONS AND WARRANTIES

The Borrower hereby represents and warrants as follows:

2.1 The Borrower is a lawfully existing individual / entity under Indian law conducting his/her/its business in compliance with the applicable laws and regulations and capable of entering into and discharging obligations under this Agreement.

2.2 The Borrower is of good financial standing and in a position to meet his/her/its ongoing obligations and
a. has not been served with (or threatened with) a notice of insolvency or bankruptcy;
b. no petition has been filed or action initiated by the Borrower or any of the Borrower's creditors or any outside party towards the Borrower's insolvency or bankruptcy;
c. the Borrower's name is not included in a Defaulter List.

2.3 The Borrower, his/her/its business and the purpose for which the Loan is to be utilized does not violate any law, statute, order, decree, rule, regulation, bye-law, notification, policy or guideline of the Government or any authority applicable to the Borrower.

2.4 There has not been any claim, which has been received by but not met with by the Borrower nor is the Borrower in default in respect of payment of any dues or meeting with any obligation.

2.5 That the information, details and documents furnished by the Borrower to the Bank in connection with or for obtaining the Loan are true, complete and correct and is not misleading in any respect.

2.6 Except to the extent disclosed to the Bank all the Borrower's contracts or agreements with, or any commitments to, any Affiliate(s) (if applicable) are on arms length basis.

2.7 The Borrower shall accept, as a conclusive proof of the correctness of any sum claimed to be due from it to the Bank under the Loan, a statement of account made out from the Bank's books and signed by the accountant or other duly authorised officer of the Bank without production of any voucher, document or paper and it further agrees to pay to the Bank the interest accrued as per applicable rates but not actually debited to his/her/its account.

2.8 These representations and warranties shall be deemed to be repeated every day during the life of the Loan.

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3. THE LOAN, REPAYMENT & CREDIT SHIELD

3.1 Relying on the representations and warranties made by the Borrower hereinabove, the Bank agrees to grant to the Borrower the Loan in an amount (as specified in the Schedule) for a tenure (as specified in the Schedule) and subject to the terms and conditions contained herein and in the Schedule.

3.2 The Bank shall be entitled, in its sole discretion, at any time, to amend any one or more of the terms and conditions of this Agreement (including but not limited to the rate of interest, method of computation of interest, pre-closure charges, cheque return charges) and also cancel and withdraw the Loan in full or part, without there being any necessity to assign a reason or give a prior notice and all such amendments shall be conclusive and binding on the Borrower.

3.3 The Loan shall be disbursed by the Bank in the manner as described in the Schedule and part of the Loan shall be disbursed to the Insurance Company on behalf of the Borrower towards payment of premium for the Loan Protect Policy if applied for by the Borrower and indicated in the Schedule hereto and repayable by the Borrower by way of monthly instalments as stated in the Schedule. The Borrower also agrees that in the event the application for the said Loan Protect Policy is not accepted by the Insurance Company, for any reason whatsoever, the Borrower shall have authorised the Insurance Company and DCB Bank shall be entitled to receive on behalf of the Borrower the refund of the premium amount paid and in such event, the Borrower agrees and authorises DCB Bank to appropriate the refund of the premium received towards the part pre-payment of the Loan.

3.4 Whenever the Borrower has agreed to avail Loan Credit Policy for the (i.e. insurance on the life of an individual as Borrower for the benefit on it available to the Bank towards repayment of the Loan in the event of the Borrower's death prior to the repayment of the Loan), the premium towards such insurance will be paid by the Bank from the proceeds of the Loan amount disbursed by the Bank as described in the Schedule.

4. INTEREST & COSTS

4.1 All amounts borrowed under the Loan and not due and payable (thus not in default) shall attract interest computed on daily outstanding and charged at monthly rests at such rate as stated in the Schedule as may be amended or determined by the Bank from time to time at the Bank's sole discretion and payable by equated monthly instalment (EMI) as stated in the Schedule.

4.2 An amount due but not paid and outstanding (thus in default) shall attract interest at default interest rate as stated in the Schedule and charged in the same manner as for the amounts not in default and in such a case such further interest would be for the tenure of the loan/number of instalments will be readjusted.

4.3 The Loan shall further attract processing fee, pre-closure (i.e. pre payment i.e. payment ahead of previously agreed repayment schedule) and other charges as specified in the Schedule as may be amended or determined by the Bank from time to time at the Bank's sole discretion.

4.4 The Loan shall further attract tax/levy as is/may become applicable as per the relevant laws.

4.5 The Bank shall be entitled to recover from the Borrower, without any notice, all amounts due but not paid by the Borrower to the debit of the Borrower's account with any branch of the Bank.

4.6 The Bank shall be entitled to recover from the Borrower all the amounts demanded to the Bank or incurred by the Bank in relation to the Loan and documentation in relation to the Loan including, without limitation, the stamp duty and penalty and cost of enforcement of security and recovery of the amounts due under the Loan.

5. BORROWER'S COVENANTS AND UNDERTAKINGS

The Borrower covenants and undertakes with the Bank as follows:

5.1 To conduct his/her/its business with honesty, integrity, diligence and efficiency in compliance with applicable laws and regulations and to keep the Bank informed about major business developments as may occur from time to time.

5.2 To maintain books of accounts and other records relating to his/her/its business as statutorily required and in keeping with the customary practices in the line of the Borrower's business so as to reflect the true and correct position of the Borrower's business and property and to have his/her/its accounts periodically (but not longer than annually in any case) audited by chartered accountants of repute.

5.3 To allow the Bank or any of its nominees to inspect such books and records and furnish to the Bank information as may be required by the Bank from time to time.

5.4 To utilize the Loan for the purpose for which it is granted and / or payment of premium towards the Loan Protect Policy as indicated by him in the Loan Application and for no other purpose whatsoever.

5.5 To observe the terms and conditions of this Agreement and any further document executed pursuant hereto and to notify the Bank forthwith upon his/her/its knowledge about any Event of Default or any other breach or default in respect thereof having occurred.

5.6 If the Borrower takes Loan Protect Policy, which compensates the Borrower for the outstanding amount of the Loan only in the event of his death, the above said insurance policy shall be assigned (“first loss payee”) to DCB Bank. The Borrower shall be solely responsible for renewal of the said insurance policy as and when it becomes due for payment of premium and renewal. Also, in the event of claims, if any, the Borrower and / or joint Borrower(s) and /or Nominee, as applicable shall comply with all necessary formalities and liaise with the Insurance Company for the same. It shall be the sole discretion of the

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Insurance Company whether to process the claim or not and the Bank shall not be liable and responsible for the same in any manner whatsoever.

6. DEFAULT AND TERMINATION

6.1 Any one or more of the following shall constitute an Event of Default:

a. Borrower's failure to pay any amount due hereunder or otherwise to the Bank;
b. Borrower's failure to pay any amount or meet with any obligation when due to any person other than the Bank or an event of default being constituted in relation to any of the Borrower's credit, borrowal or any other arrangement with any person other than the Bank;
c. Any person other than the Bank accelerating repayment (i.e. demanding repayment ahead of the previously agreed repayment schedule) due from the Borrower to such other person under the Borrower's credit, borrowal or any other arrangement with that person.
d. Any of the representation or warranty of the Borrower made herein being or becoming incomplete, untrue or incorrect;
e. Breach by the Borrower of any covenants and undertakings or any other terms and conditions of this Agreement or any other agreement made pursuant hereto;
f. Any of the guarantee(s) provided by the Borrower being or becoming invalid or unavailable;
g. The Borrower being or becoming unable to carry on the business for any reason;
h. Any steps for the liquidation, winding up or appointment of a receiver of the Borrower's assets coming to the Bank's notice;
i. The Borrower fails to perform any of his/her obligations in accordance with this Agreement;
j. Any steps are taken with a view to make the Borrower insolvent or the Borrower expires or is declared insolvent or insane or is convicted of any offence;
k. Any of the cheques delivered or to be delivered by the Borrower to the Bank in terms and conditions hereof is not encashed for any reason whatsoever on presentation;
l. Any instruction is given by the Borrower for stop payment of post-dated repayment cheques for any reason whatsoever;
m. The professional degree/license acquired by the Borrower is suspended / cancelled and/or any proceeding or inquiry is initiated/contemplated for professional misconduct against the Borrower;
n. For cancellation/suspension of such professional degree/license before any court, tribunal or the authority which issues or regulates such degree/license;
o. Any circumstances exist or arise which in the opinion of the Bank gives rise to an opinion that the Borrower may not be able to pay the Loan amount or the Bank may not be in a position to recover the same;
p. The Borrower committing a default under any other agreement or contract entered into by the Borrower with the Bank or any third party and the same not being remedied to the satisfaction of the Bank within such time as the Bank may in its absolute discretion specify;
q. If the Loan Protect Policy is cancelled by the Insurance Company.
r. Any other event, which in the Bank's opinion, prejudicially affects the Bank's interest.

6.2 Upon occurrence of an Event of Default and without prejudice to the Bank's other rights, the Bank shall be entitled to cancel and withdraw the Loan and require the Borrower to forthwith pay the entire amount outstanding under it together with interest (and costs and expenses if any).

6.3 On the question whether any of the Event of Default has happened, the decision of the Bank shall be conclusive and binding on the Borrower.

6.4 The Bank may at any time, at its discretion, by notice to the Borrower terminate the Loan specified to be repayable or recallable on demand regardless of whether any Event of Default has occurred, and the outstandings in relation to the Loan shall become immediately due and payable. The Bank shall not at any time be obliged to make or continue to make available to the Borrower the Loan granted to the Borrower for any period of time or to make available to the Borrower any particular advance thereunder. Also, the Bank may at its discretion, by notice terminate the Loan and stop further disbursements, if any available in the loan account. Notwithstanding anything contained in this Agreement, the repayment of the Loan in instalments shall stand withdrawn and the principal amount outstanding in the loan account along with interest, cost, charges and expenses shall forthwith become due and payable. Without prejudice to this, in case the Borrower changes the employment/profession/address/is transferred from his/her present posting/changes his/her salary account/main bank account, etc., the Bank, at its sole discretion, shall have the right to either continue the Loan or recall the whole of the Loan amount or continue the Loan with revised Loan amount, tenor, and terms and conditions.

6.5 In addition to any general lien or similar right to which the Bank is in law generally entitled, the Bank may at its sole discretion use and enforce its right of set-off and cross default between all the loans / facilities sanctioned to the Borrower.
For the purpose of cross default, "indebtedness" means any indebtedness in respect of monies borrowed or liabilities contracted (including under guarantees, indemnities, hire purchase and leasing) towards the Bank.
The Bank may at its absolute discretion appropriate any payments made by the Borrower under any loan / facility towards any other indebtedness and such appropriation shall be final and binding upon the Borrower and the Borrower shall continue to remain liable to the Bank for payment of dues under the loan / facility in respect of which such sums of money were so paid but were appropriated towards another agreement or transaction entered into by the Borrower or towards the Borrower's another indebtedness. In addition, the Bank shall have express power to sell / transfer or otherwise dispose of any and all security created in its favour under the security documents or deposited with it or under its possession or control and appropriate the same towards satisfaction of amounts due to the Bank on account of any agreements or transactions entered into by the Borrower and/or the Borrower's indebtedness whatsoever.
In case the Borrower commits a default under any of the loans / facilities availed by the Borrower, then such default shall be deemed to be default of all the loans / facilities availed by the Borrower, notwithstanding anything contrary elsewhere contained in any writing or otherwise, and the Bank shall regard all borrowings by the Borrower as immediately due and

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payable and the Bank shall be entitled to recall all the loans / facilities granted to the Borrower, lien or other security interest created and subsisting as on that date towards recovery of its entire dues.

6.6 The Borrower authorises the Bank to, for and on behalf of the Borrower, instruct the Borrower's employer as informed by the Borrower to the Bank, to debit any amounts due and unpaid by the Borrower to the Bank under this Agreement from any amount including salary / remuneration / compensation payable by such employer to the Borrower. The Borrower agrees that a certificate issued by the Bank to such employer shall be conclusive evidence of the amount due and payable by the Borrower, and such employer is hereby irrevocably and unconditionally authorised to pay the amount to the Bank without reference to the Borrower.

7. MISCELLANEOUS

7.1 The Bank shall have a paramount lien and right of set off on/against (i) all insurance proceeds whatsoever, as well as (ii) all other monies, securities, deposits of any kind and nature. including fixed deposits and bonds, and all other assets and properties belonging to the Borrower or standing to the Borrower's credit (whether held singly or jointly with any other person), which are deposited with/under the control of the Bank (or any of its group companies) whether by way of security or otherwise pursuant to any contract entered/to be entered into by the Borrower in any capacity or held by the Bank for safe custody or otherwise, and the Bank shall be entitled and authorised to exercise such right of lien and set off against all such amounts and assets for settlement of the Borrower's dues with or without any further notice to the Borrower. In this regard, any discharge given by the Bank to its group companies shall be valid and binding on the Borrower. The joint account holder/s to such monies, securities, deposits and other assets is/are aware of, and have no objection to (a) the Loan applied for, (b) the Loan Terms, (c) using such monies from the joint accounts for paying/repaying the Loan and all other amounts due to the Bank, and (d) the Bank's rights of set off in the event of default of the Loan terms. It shall be the Borrower's sole responsibility and liability to settle all disputes/objections with such joint account holders, if so required, and the Bank shall be well within its rights to exercise the right of set off against the money lying in the joint account/s or in any deposit/bond/other assets held jointly, for settlement of dues.

7.2 Without prejudice to the Bank's absolute right in its uncontrolled discretion to adjust, appropriate or set-off at any time and from time to time any amount received or to be received by the Bank from the Borrower in any account at any of the Bank's branches whatsoever, any amount received or to be received by the Bank may at the sole discretion of the Bank be appropriated by the Bank in the following order or in any other order as the Bank may deem fit:
(a) First, towards costs, charges, expenses and other moneys payable to the Bank;
(b) Secondly, towards interest payable to the Bank; and
(c) Lastly, towards the principal sums due and payable to the Bank.
(d) The Borrower agrees to provide to the Bank such further documents as may be required by the Bank from time to time to comply with the Know Your Customer (KYC) requirements of the Reserve Bank of India (RBI) and the Bank. The Bank reserves the right to recall the Loan facility and guarantees, if any and appropriate proceeds thereof towards the outstanding dues and recover the balance from the Borrower, if any, or close the account in case the so required documents are not provided by the Borrower to the Bank.

7.3 Post Dated Cheques
(i) The Borrower shall, if so required by the Bank, deliver Post Dated Cheques (PDC) [the term PDC / cheque/s/payments instructions shall include ECS, NACH, NEFT, RTGS or any other payment instructions as the case may be] to the Bank for the due payment of the instalments. Such cheques shall be deemed to have been given for adequate consideration already received by the Borrower and shall not absolve the Borrower from his/her/its/their liability to pay any sums hereunder until the cheque is duly realized. The number of cheques for the due repayments shall be as may be specified by the Bank.
(ii) The Borrower shall maintain adequate balance for realisation of the cheques/processing of payment instructions on their due dates for payment. It is expressly agreed and understood that the Borrower shall at no time close the bank account/s from which the said cheques have been issued or issue any communication to the Bank or their/his/her/its bank for stopping or postponing the presentment of the said cheques, and the Bank and/or the bank on whom the cheques are drawn is /are not bound to take notice of any such communication and which, if issued, will be regarded as a breach of this Agreement and any such act of the Borrower shall be deemed to have committed with an intention to cheat the Bank and avoid prosecution under the Negotiable Instruments Act, 1881 and/or any other applicable act, and the Bank shall be entitled to initiate appropriate criminal proceedings against the Borrower. The Borrower agree/s that if any other amounts is / are outstanding for payment by the Borrower including on account of the indebtedness, the Bank shall be entitled to encash the cheques deposited with it for the satisfaction of such outstanding amounts not withstanding that the cheques have been deposited by the Borrower with the Bank and/or his/her/its/their bank pursuant to this Agreement; and the Borrower shall continue to be indebted to the Bank for the instalments / any amount due hereunder, as the case may be.
(iii) In the event of any cheque/payment instruction being dishonoured / returned, the Borrower shall be required to pay the cheque/payment instruction return charges of the amount specified in the Schedule herein for every such dishonour / return.
(iv) If the Borrower at any time wishes to replace a cheque with another then the Borrower will be required to pay the swap charges specified in the Schedule herein for every cheque replaced.
(v) In the event the Borrower requests the Bank, and the Bank agrees to, waive the requirement of Post Dated Cheques, the Borrower, as the case may be, shall pay any amount due hereunder and every part thereof on the concerned due dates at the place as desired by the Bank. The Borrower further undertakes that, if the Bank has to collect such amounts, the Borrower shall pay the collection charges as mentioned in the Schedule and Sanction letter herein for every such instalment or any other amount collected by the Bank.

7.4 The Schedule attached to this Agreement shall be an integral part of this Agreement and shall be read in conjunction with the terms and conditions contained herein.

7.5 All payments of whatever nature (whether by way of principal, interest or otherwise) shall be made to the Bank in immediately

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available funds on the day on which they are due, without right of set off or counterclaim or deductions and free and net of all taxes, imposts and levies of any nature by whomsoever imposed, both present and future. All payments shall be made at the place specified by the Bank and shall be so paid as to enable the Bank to realize the sum on or before the due date. The payment shall be deemed to have been made only on realization and credit for payments shall be given only on realization.

7.6 The Bank shall be entitled to sell, assign or transfer the Bank's rights and obligations under this Agreement to any other person(s) of the Bank's choice in whole or in part and in such manner (by way of securitization, interbank participation or otherwise) and on such terms as the Bank may decide, without any notice to the Borrower. Any such arrangement shall conclusively bind the Borrower. Any cost in this behalf, whether on account of such sale, assignment or transfer or enforcement of rights and recovery of outstanding and dues shall be to the account of the Borrower. The Borrower undertakes to pay to third parties the difference between the Loan outstanding and the amount received by the Bank in the event of transfer of the portfolio to a third party.

7.7 The Borrower shall not be entitled to directly or indirectly assign the benefit or obligation of this Agreement without the prior written permission of the Bank.

7.8 The Borrower hereon agrees, confirms and undertakes that:

(i) The Bank shall, as it may deem appropriate and necessary, be entitled to disclose all or any: (a) information and data relating to the Borrower; (b) information or data relating to the Loan or any other credit facility/ies availed/to be availed by the Borrower from the Bank; (c) obligations assumed/to be assumed by the Borrower in relation to the Loan; (d) default, if any, committed by the Borrower in discharge of the aforesaid obligations, to any agency/credit bureau (the 'Agency') authorized in this behalf by the RBI.

(ii) The Borrower hereby gives specific consent to the Bank for disclosing / submitting the 'financial information' as defined in Section 3 (13) of the Insolvency and Bankruptcy Code, 2016 ('Code' for brief) read with the relevant Regulations/ Rules framed under the Code, as amended and in force from time to time and as specified there under from time to time, in respect of the said facilities availed from the Bank, from time to time, to any 'Information Utility' ('IU' for brief) as defined in Section 3 (21) of the Code, in accordance with the relevant Regulations framed under the Code, and directions issued by the Reserve Bank of India to the banks from time to time and hereby specifically agree to promptly authenticate the financial information submitted by the Bank, as and when requested by the concerned IU.

(iii) The Agency so authorized may use, process the aforesaid information and data disclosed by the Bank in the manner as deemed fit by them.

(iv) The Agency so authorized may furnish for consideration, the processed information and data or products there of prepared by them, to banks/ financial institutions and other credit grantors or registered users, as may be by RBI in this behalf.

(v) The information and data furnished by the Borrower to the Bank from time to time shall be complete, true and correct.

7.9 The Borrower hereby agrees that in case the Borrower commits a default in payment or repayment of any amounts in respect of the Loan, the Bank and/or RBI will have an unqualified right to disclose or publish the name/s (along with photograph and any other information) of the Borrower/s or the name/s (along with photograph and any other information) of the guarantor/s as defaulter/s in such manner and through such medium as the Bank and/or RBI in their absolute discretion may think fit.

7.10 Regulatory Declarations

The Borrower hereby declares to the Bank as follows:

1 Where the Borrower is an individual(s), none of the “Directors of the Bank” or their relatives is his/her business partner or guarantor.

The term “Directors of the Bank” for the purpose of this Sub-Clause 1 shall mean and include the Managing Director-cum-Chief Executive Officer (CEO), the top most officers of Business and Credit (presently the business head and credit head).

2 Where the Borrower is an individual/proprietor(s), he/she is not a director or relative of a director of the Bank or other banks

The term “Directors of other Banks” include (apart from Directors of commercial banks) Directors of Scheduled Co-operative Banks, Directors of subsidiaries / trustees of mutual funds / venture capital funds.

3 Where the Borrower is an individual/(s), he/she is not a relative of any “Specified Senior Officer” of the Bank.

The term “Specified Senior Officer” for the purpose of this Sub-Clause 3 means and include the top most senior officer (presently the business head and credit head) and his/her immediate next lower level officer in credit and business functions of the Bank and also includes the senior management of the Bank (as listed under the link “Senior Management” on the Bank's website www.dcbbank.com.

Substantial interest for the purpose of Sub-Clauses 1, 2 and 3 shall have the same meaning assigned to it in Section 5(ne) of the Banking Regulation Act, 1949.

Relative for the purpose of Sub-Clauses 1, 2 and 3 means spouse, father, mother (including step-mother), son (including step-son), son's wife, daughter (including step-daughter), daughter's husband, brother (including step-brother), brother's wife, sister (including step-sister), sister's husband, brother (including step-brother) of the spouse, sister (including step-sister) of the spouse.

4 In case where the above negative confirmations in Sub-Clauses 1, 2 and 3 are not true, then the Borrower shall provide a written declaration with details of such relationship to the Bank. If the details of such declaration change during the term of any facility or any part thereof then, the Borrower shall promptly provide a written declaration to the Bank of any such change.

5 The Borrower is not:

(a) on the Export Credit Guarantee Corporation's (ECGC's) specified approval list; or

(b) convicted under the provisions of Conservation of Foreign Exchange and Prevention of Smuggling Activities Act, 1974 or Foreign Exchange Management Act (FEMA); or

(c) on RBI's defaulters / caution list; or

(d) on the Bank's defaulter list.

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7.11 All notices, requests, demands, waivers and other communications required or permitted to be given under this Agreement shall be in writing and shall be deemed to have been duly given if (a) delivered personally, (b) mailed, certified or registered mail with postage prepaid, (c) sent by next-day or overnight mail/courier or delivered, (d) sent by telephony/fax or telegram, to the address of the Bank and the Borrower as stated herein and in the Schedule attached hereto, or (e) sent by email/sms on registered email id/mobile number.

7.12 Any delay in exercising or omission to exercise any right, power or remedy accruing to the Bank under this Agreement or any other Agreement or document shall not impair any such right, power or remedy and shall not be construed to be a waiver thereof or any acquiescence in any default; not shall the action or inaction of the Bank in respect of any default or any acquiescence by it in any default, affect or impair any right, power or remedy of the Bank in respect of any other default.

7.13 The Bank may at any time and without notice to the Borrower combine or consolidate all or any of the accounts held in the Borrower's name or any other account of which the Borrower is the (sole) beneficial owner whether in his/her/its own name or in the name of a commercial entity of which the Borrower is the sole proprietor, with any Branch or Branches of the Bank irrespective of the title of any such account or currency in which any such account may be dominated.

7.14 If there are two or more Borrowers, the Borrower's liabilities under this Agreement shall be joint and several.

7.15 Any provision of the Agreement hereof being or becoming illegal or unenforceable for any reason shall not affect the legality and enforceability of the remainder of the provisions of this Agreement.

7.16 All clause headings in this Agreement have been inserted for convenience of reference only and shall not affect the interpretation of the provisions of this Agreement.

7.17 If any dispute/difference arises between the Bank and the Borrower hereto during the subsistence of this Agreement or thereafter, in connection with any provision of this Agreement or regarding a question including but not limited to the questions whether the termination of this Agreement has been legitimate, the dispute/difference may be referred to arbitration of a sole arbitrator to be appointed by the Bank. The place of arbitration shall be the place (Jurisdiction) as mentioned in the Schedule and any award whether interim or final, shall be made, and shall be deemed for all purposes between the parties to be made at such place. The award including the interim award/s of the arbitrator shall be final and binding upon the parties concerned. The arbitration proceedings shall be governed by the Arbitration and Conciliation Act, 1996, as amended from time to time. The proceedings of arbitration shall be held in English language.

7.18 This Agreement shall be construed and governed in accordance with the laws of India. This Agreement shall be subject to the exclusive jurisdiction of the courts/tribunals situated at the place as mentioned in the Schedule hereto.

7.19. **INDEMNIFICATION**

The Borrower undertakes to indemnify and keep the Bank and its officers / employees / directors fully indemnified and harmless from and against all the consequences of breach of any of the terms, conditions, statements, undertakings representations and warranties of this Agreement as also of any of its representations or warranties not being found to be true at any point of time, including any actions, suits, claims, proceedings, damages, liabilities, losses, expenses or costs (hereinafter referred to as "**Claims**") faced, suffered or incurred by the Bank. The Borrower hereby accepts and acknowledges to have clearly agreed and understood that this indemnity would cover all acts and omissions on the part of the warranties and / or representations of the Borrower. Similarly, in the event of any claims being made on the Bank, on account of any breach of warranty, representations, non-compliance of any applicable law, unauthorised act, fraud, deed or thing done or omitted to be done or undertaking made by the Borrower or its employees, agents, being false, the Borrower undertakes to pay on first demand made by the Bank of any amount without any demur, reservation, contest, protest whatsoever within 7 (seven) days of the demand being made.

7.20 **Credit Information**

The Borrower also agrees that :

a) The Credit Information Companies (CICs) and any agency so authorised may use, process the said information and data disclosed by the Bank in the manner as deemed fit by them; and

b) The Credit Information Companies (CICs) and any other agency so authorised may furnish for consideration the processed information and data or products thereof prepared by them to banks / financial institutions and other credit granters or registered users, as may be specified by the Reserve Bank of India in this behalf.

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Borrower

Schedule

Loan amount	₹ (in figures):	₹ (in words):

Loan Protect Policy premium financing applied for: ☐ Yes ☐ No

Loan Amount towards Loan Protect Policy premium financing: ₹ (in figures):_____ _____

₹ (in words) _____

To Borrower	₹ (in figures):
To Insurance Company	₹ (in figures):

Branch / Office:	
Loan tenure / Period:	
Interest rate:	% per annum
Default interest rate:	% per annum
Monthly repayment amount / EMI: ₹	
Processing fee: ₹	
Pre-closure charges: ₹	
Cheque/Payment instruction return charges: ₹	
Swap charges: ₹	
Collection charges: ₹	
Jurisdiction / Place of arbitration:	
Special conditions:	
EMI payment date:	First EMI date: EMI would be due on 1st / 4th / 10th of every month starting with ..... Last EMI date: .....

In witness hereof the Borrower has executed this Agreement on the date and the place first stated herein after verifying and understanding the contents of this Agreement.

INDIVIDUAL(S) AS BORROWER

Name	Signature ❾

Signed and delivered by the within named DCB Bank Limited.

by the hand of Mr. / Mrs. _____

Its Authorised Signatory

❼ Borrower/s

❽ Borrower/s

❿ _____ Borrower/s

CUSTOMER COPY

MICRO ENTERPRISE LOAN AGREEMENT

❶

Borrower

Date:	Borrower's Address:
Borrower's Name:	

This Loan Agreement ("Agreement") is executed by the Borrower on the date stated above.
WITNESSETH THAT
In consideration of the Bank having granted / agreed to the Borrower the Loan on the terms and conditions in this Agreement including its Schedule, the Borrower agrees as follows:

1. DEFINITION

In this Agreement, the following capitalized words shall have the following meanings:

1.1 Bank means DCB Bank Limited, a Banking Company incorporated under the Companies Act, 1956 (CIN: L99999MH1995PLC089008) and deemed to exist within the meaning of Companies Act, 2013, having its Registered Office at 6th Floor, Tower A, Peninsula Business Park, Senapati Bapat Marg, Lower Parel, Mumbai – 400 013 and a branch / office amongst other place as mentioned in the Schedule hereto (the expression the "Bank" or "DCB Bank" shall, unless the context otherwise requires, be deemed to mean and include its successors and assigns).

1.2 Borrower means an individual(s) whose name is stated above as Borrower availing of the Loan from the Bank in the terms hereof and such individual(s) being one or more individual(s) such individual and each one of them when more than one are deemed to have made this Agreement individually and all of them agreed to obligations hereunder jointly and severally and the term Borrower shall include heirs, executors, administrators, legal representatives, successors and permitted assigns of each one of them.

1.3 Defaulter List means any list published by Reserve Bank of India (RBI), Credit Information Bureau (India) Limited (CIBIL) or any other credit bureau or authority under law or regulation indicating persons in or connected with default, irregularity or violation of any kind.

1.4 Loan means the Micro Enterprise loan granted / agreed to be granted by the Bank to the Borrower as specified in this Agreement.

1.5 Person shall include one or more individual(s), a partnership firm, an association, a trust, a HUF or any other entity.

1.6 Schedule shall mean the schedule at the bottom of this Agreement as amended from time to time.

1.7 Insurance Company' means the insurance company through whom the Borrower applies and takes the Loan Protect Policy;

1.8 'Loan Protect Policy' means policy taken by the Borrower in respect of which DCB Bank, at the request of the Borrower, has disbursed / agreed to disburse the insurance premium towards the policy as set out in the Schedule hereto.

2. BORROWER'S REPRESENTATIONS AND WARRANTIES

The Borrower hereby represents and warrants as follows:

2.1 The Borrower is a lawfully existing individual / entity under Indian law conducting his/her/its business in compliance with the applicable laws and regulations and capable of entering into and discharging obligations under this Agreement.

2.2 The Borrower is of good financial standing and in a position to meet his/her/its ongoing obligations and
a. has not been served with (or threatened with) a notice of insolvency or bankruptcy;
b. no petition has been filed or action initiated by the Borrower or any of the Borrower's creditors or any outside party towards the Borrower's insolvency or bankruptcy;
c. the Borrower's name is not included in a Defaulter List.

2.3 The Borrower, his/her/its business and the purpose for which the Loan is to be utilized does not violate any law, statute, order, decree, rule, regulation, bye-law, notification, policy or guideline of the Government or any authority applicable to the Borrower.

2.4 There has not been any claim, which has been received by but not met with by the Borrower nor is the Borrower in default in respect of payment of any dues or meeting with any obligation.

2.5 That the information, details and documents furnished by the Borrower to the Bank in connection with or for obtaining the Loan are true, complete and correct and is not misleading in any respect.

2.6 Except to the extent disclosed to the Bank all the Borrower's contracts or agreements with, or any commitments to, any Affiliate(s) (if applicable) are on arms length basis.

2.7 The Borrower shall accept, as a conclusive proof of the correctness of any sum claimed to be due from it to the Bank under the Loan, a statement of account made out from the Bank's books and signed by the accountant or other duly authorised officer of the Bank without production of any voucher, document or paper and it further agrees to pay to the Bank the interest accrued as per applicable rates but not actually debited to his/her/its account.

2.8 These representations and warranties shall be deemed to be repeated every day during the life of the Loan.

❷ _____
Borrower

3. THE LOAN, REPAYMENT & CREDIT SHIELD

3.1 Relying on the representations and warranties made by the Borrower hereinabove, the Bank agrees to grant to the Borrower the Loan in an amount (as specified in the Schedule) for a tenure (as specified in the Schedule) and subject to the terms and conditions contained herein and in the Schedule.

3.2 The Bank shall be entitled, in its sole discretion, at any time, to amend any one or more of the terms and conditions of this Agreement (including but not limited to the rate of interest, method of computation of interest, pre-closure charges, cheque return charges) and also cancel and withdraw the Loan in full or part, without there being any necessity to assign a reason or give a prior notice and all such amendments shall be conclusive and binding on the Borrower.

3.3 The Loan shall be disbursed by the Bank in the manner as described in the Schedule and part of the Loan shall be disbursed to the Insurance Company on behalf of the Borrower towards payment of premium for the Loan Protect Policy if applied for by the Borrower and indicated in the Schedule hereto and repayable by the Borrower by way of monthly instalments as stated in the Schedule. The Borrower also agrees that in the event the application for the said Loan Protect Policy is not accepted by the Insurance Company, for any reason whatsoever, the Borrower shall have authorised the Insurance Company and DCB Bank shall be entitled to receive on behalf of the Borrower the refund of the premium amount paid and in such event, the Borrower agrees and authorises DCB Bank to appropriate the refund of the premium received towards the part pre-payment of the Loan.

3.4 Whenever the Borrower has agreed to avail Loan Credit Policy for the (i.e. insurance on the life of an individual as Borrower for the benefit on it available to the Bank towards repayment of the Loan in the event of the Borrower's death prior to the repayment of the Loan), the premium towards such insurance will be paid by the Bank from the proceeds of the Loan amount disbursed by the Bank as described in the Schedule.

4. INTEREST & COSTS

4.1 All amounts borrowed under the Loan and not due and payable (thus not in default) shall attract interest computed on daily outstanding and charged at monthly rests at such rate as stated in the Schedule as may be amended or determined by the Bank from time to time at the Bank's sole discretion and payable by equated monthly instalment (EMI) as stated in the Schedule.

4.2 An amount due but not paid and outstanding (thus in default) shall attract interest at default interest rate as stated in the Schedule and charged in the same manner as for the amounts not in default and in such a case such further interest would be for the tenure of the loan/number of instalments will be readjusted.

4.3 The Loan shall further attract processing fee, pre-closure (i.e. pre payment i.e. payment ahead of previously agreed repayment schedule) and other charges as specified in the Schedule as may be amended or determined by the Bank from time to time at the Bank's sole discretion.

4.4 The Loan shall further attract tax/levy as is/may become applicable as per the relevant laws.

4.5 The Bank shall be entitled to recover from the Borrower, without any notice, all amounts due but not paid by the Borrower to the debit of the Borrower's account with any branch of the Bank.

4.6 The Bank shall be entitled to recover from the Borrower all the amounts demanded to the Bank or incurred by the Bank in relation to the Loan and documentation in relation to the Loan including, without limitation, the stamp duty and penalty and cost of enforcement of security and recovery of the amounts due under the Loan.

5. BORROWER'S COVENANTS AND UNDERTAKINGS

The Borrower covenants and undertakes with the Bank as follows:

5.1 To conduct his/her/its business with honesty, integrity, diligence and efficiency in compliance with applicable laws and regulations and to keep the Bank informed about major business developments as may occur from time to time.

5.2 To maintain books of accounts and other records relating to his/her/its business as statutorily required and in keeping with the customary practices in the line of the Borrower's business so as to reflect the true and correct position of the Borrower's business and property and to have his/her/its accounts periodically (but not longer than annually in any case) audited by chartered accountants of repute.

5.3 To allow the Bank or any of its nominees to inspect such books and records and furnish to the Bank information as may be required by the Bank from time to time.

5.4 To utilize the Loan for the purpose for which it is granted and / or payment of premium towards the Loan Protect Policy as indicated by him in the Loan Application and for no other purpose whatsoever.

5.5 To observe the terms and conditions of this Agreement and any further document executed pursuant hereto and to notify the Bank forthwith upon his/her/its knowledge about any Event of Default or any other breach or default in respect thereof having occurred.

5.6 If the Borrower takes Loan Protect Policy, which compensates the Borrower for the outstanding amount of the Loan only in the event of his death, the above said insurance policy shall be assigned (“first loss payee”) to DCB Bank. The Borrower shall be solely responsible for renewal of the said insurance policy as and when it becomes due for payment of premium and renewal. Also, in the event of claims, if any, the Borrower and / or joint Borrower(s) and /or Nominee, as applicable shall comply with all necessary formalities and liaise with the Insurance Company for the same. It shall be the sole discretion of the

❸ _____
Borrower

Insurance Company whether to process the claim or not and the Bank shall not be liable and responsible for the same in any manner whatsoever.

6. DEFAULT AND TERMINATION

6.1 Any one or more of the following shall constitute an Event of Default:

a. Borrower's failure to pay any amount due hereunder or otherwise to the Bank;
b. Borrower's failure to pay any amount or meet with any obligation when due to any person other than the Bank or an event of default being constituted in relation to any of the Borrower's credit, borrowal or any other arrangement with any person other than the Bank;
c. Any person other than the Bank accelerating repayment (i.e. demanding repayment ahead of the previously agreed repayment schedule) due from the Borrower to such other person under the Borrower's credit, borrowal or any other arrangement with that person.
d. Any of the representation or warranty of the Borrower made herein being or becoming incomplete, untrue or incorrect;
e. Breach by the Borrower of any covenants and undertakings or any other terms and conditions of this Agreement or any other agreement made pursuant hereto;
f. Any of the guarantee(s) provided by the Borrower being or becoming invalid or unavailable;
g. The Borrower being or becoming unable to carry on the business for any reason;
h. Any steps for the liquidation, winding up or appointment of a receiver of the Borrower's assets coming to the Bank's notice;
i. The Borrower fails to perform any of his/her obligations in accordance with this Agreement;
j. Any steps are taken with a view to make the Borrower insolvent or the Borrower expires or is declared insolvent or insane or is convicted of any offence;
k. Any of the cheques delivered or to be delivered by the Borrower to the Bank in terms and conditions hereof is not encashed for any reason whatsoever on presentation;
l. Any instruction is given by the Borrower for stop payment of post-dated repayment cheques for any reason whatsoever;
m. The professional degree/license acquired by the Borrower is suspended / cancelled and/or any proceeding or inquiry is initiated/contemplated for professional misconduct against the Borrower;
n. For cancellation/suspension of such professional degree/license before any court, tribunal or the authority which issues or regulates such degree/license;
o. Any circumstances exist or arise which in the opinion of the Bank gives rise to an opinion that the Borrower may not be able to pay the Loan amount or the Bank may not be in a position to recover the same;
p. The Borrower committing a default under any other agreement or contract entered into by the Borrower with the Bank or any third party and the same not being remedied to the satisfaction of the Bank within such time as the Bank may in its absolute discretion specify;
q. If the Loan Protect Policy is cancelled by the Insurance Company.
r. Any other event, which in the Bank's opinion, prejudicially affects the Bank's interest.

6.2 Upon occurrence of an Event of Default and without prejudice to the Bank's other rights, the Bank shall be entitled to cancel and withdraw the Loan and require the Borrower to forthwith pay the entire amount outstanding under it together with interest (and costs and expenses if any).

6.3 On the question whether any of the Event of Default has happened, the decision of the Bank shall be conclusive and binding on the Borrower.

6.4 The Bank may at any time, at its discretion, by notice to the Borrower terminate the Loan specified to be repayable or recallable on demand regardless of whether any Event of Default has occurred, and the outstandings in relation to the Loan shall become immediately due and payable. The Bank shall not at any time be obliged to make or continue to make available to the Borrower the Loan granted to the Borrower for any period of time or to make available to the Borrower any particular advance thereunder. Also, the Bank may at its discretion, by notice terminate the Loan and stop further disbursements, if any available in the loan account. Notwithstanding anything contained in this Agreement, the repayment of the Loan in instalments shall stand withdrawn and the principal amount outstanding in the loan account along with interest, cost, charges and expenses shall forthwith become due and payable. Without prejudice to this, in case the Borrower changes the employment/profession/address/is transferred from his/her present posting/changes his/her salary account/main bank account, etc., the Bank, at its sole discretion, shall have the right to either continue the Loan or recall the whole of the Loan amount or continue the Loan with revised Loan amount, tenor, and terms and conditions.

6.5 In addition to any general lien or similar right to which the Bank is in law generally entitled, the Bank may at its sole discretion use and enforce its right of set-off and cross default between all the loans / facilities sanctioned to the Borrower.
For the purpose of cross default, "indebtedness" means any indebtedness in respect of monies borrowed or liabilities contracted (including under guarantees, indemnities, hire purchase and leasing) towards the Bank.
The Bank may at its absolute discretion appropriate any payments made by the Borrower under any loan / facility towards any other indebtedness and such appropriation shall be final and binding upon the Borrower and the Borrower shall continue to remain liable to the Bank for payment of dues under the loan / facility in respect of which such sums of money were so paid but were appropriated towards another agreement or transaction entered into by the Borrower or towards the Borrower's another indebtedness. In addition, the Bank shall have express power to sell / transfer or otherwise dispose of any and all security created in its favour under the security documents or deposited with it or under its possession or control and appropriate the same towards satisfaction of amounts due to the Bank on account of any agreements or transactions entered into by the Borrower and/or the Borrower's indebtedness whatsoever.
In case the Borrower commits a default under any of the loans / facilities availed by the Borrower, then such default shall be deemed to be default of all the loans / facilities availed by the Borrower, notwithstanding anything contrary elsewhere

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Borrower

contained in any writing or otherwise, and the Bank shall regard all borrowings by the Borrower as immediately due and payable and the Bank shall be entitled to recall all the loans / facilities granted to the Borrower, lien or other security interest created and subsisting as on that date towards recovery of its entire dues.

6.6 The Borrower authorises the Bank to, for and on behalf of the Borrower, instruct the Borrower's employer as informed by the Borrower to the Bank, to debit any amounts due and unpaid by the Borrower to the Bank under this Agreement from any amount including salary / remuneration / compensation payable by such employer to the Borrower. The Borrower agrees that a certificate issued by the Bank to such employer shall be conclusive evidence of the amount due and payable by the Borrower, and such employer is hereby irrevocably and unconditionally authorised to pay the amount to the Bank without reference to the Borrower.

7. MISCELLANEOUS

7.1 The Bank shall have a paramount lien and right of set off on/against (i) all insurance proceeds whatsoever, as well as (ii) all other monies, securities, deposits of any kind and nature. including fixed deposits and bonds, and all other assets and properties belonging to the Borrower or standing to the Borrower's credit (whether held singly or jointly with any other person), which are deposited with/under the control of the Bank (or any of its group companies) whether by way of security or otherwise pursuant to any contract entered/to be entered into by the Borrower in any capacity or held by the Bank for safe custody or otherwise, and the Bank shall be entitled and authorised to exercise such right of lien and set off against all such amounts and assets for settlement of the Borrower's dues with or without any further notice to the Borrower. In this regard, any discharge given by the Bank to its group companies shall be valid and binding on the Borrower. The joint account holder/s to such monies, securities, deposits and other assets is/are aware of, and have no objection to (a) the Loan applied for, (b) the Loan Terms, (c) using such monies from the joint accounts for paying/repaying the Loan and all other amounts due to the Bank, and (d) the Bank's rights of set off in the event of default of the Loan terms. It shall be the Borrower's sole responsibility and liability to settle all disputes/objections with such joint account holders, if so required, and the Bank shall be well within its rights to exercise the right of set off against the money lying in the joint account/s or in any deposit/bond/other assets held jointly, for settlement of dues.

7.2 Without prejudice to the Bank's absolute right in its uncontrolled discretion to adjust, appropriate or set-off at any time and from time to time any amount received or to be received by the Bank from the Borrower in any account at any of the Bank's branches whatsoever, any amount received or to be received by the Bank may at the sole discretion of the Bank be appropriated by the Bank in the following order or in any other order as the Bank may deem fit:
(a) First, towards costs, charges, expenses and other moneys payable to the Bank;
(b) Secondly, towards interest payable to the Bank; and
(c) Lastly, towards the principal sums due and payable to the Bank.
(d) The Borrower agrees to provide to the Bank such further documents as may be required by the Bank from time to time to comply with the Know Your Customer (KYC) requirements of the Reserve Bank of India (RBI) and the Bank. The Bank reserves the right to recall the Loan facility and guarantees, if any and appropriate proceeds thereof towards the outstanding dues and recover the balance from the Borrower, if any, or close the account in case the so required documents are not provided by the Borrower to the Bank.

7.3 Post Dated Cheques
(i) The Borrower shall, if so required by the Bank, deliver Post Dated Cheques (PDC) [the term PDC / cheque/s/payments instructions shall include ECS, NACH, NEFT, RTGS or any other payment instructions as the case may be] to the Bank for the due payment of the instalments. Such cheques shall be deemed to have been given for adequate consideration already received by the Borrower and shall not absolve the Borrower from his/her/its/their liability to pay any sums hereunder until the cheque is duly realized. The number of cheques for the due repayments shall be as may be specified by the Bank.
(ii) The Borrower shall maintain adequate balance for realisation of the cheques/processing of payment instructions on their due dates for payment. It is expressly agreed and understood that the Borrower shall at no time close the bank account/s from which the said cheques have been issued or issue any communication to the Bank or their/his/her/its bank for stopping or postponing the presentment of the said cheques, and the Bank and/or the bank on whom the cheques are drawn is /are not bound to take notice of any such communication and which, if issued, will be regarded as a breach of this Agreement and any such act of the Borrower shall be deemed to have committed with an intention to cheat the Bank and avoid prosecution under the Negotiable Instruments Act, 1881 and/or any other applicable act, and the Bank shall be entitled to initiate appropriate criminal proceedings against the Borrower. The Borrower agree/s that if any other amounts is / are outstanding for payment by the Borrower including on account of the indebtedness, the Bank shall be entitled to encash the cheques deposited with it for the satisfaction of such outstanding amounts not withstanding that the cheques have been deposited by the Borrower with the Bank and/or his/her/its/their bank pursuant to this Agreement; and the Borrower shall continue to be indebted to the Bank for the instalments / any amount due hereunder, as the case may be.
(iii) In the event of any cheque/payment instruction being dishonoured / returned, the Borrower shall be required to pay the cheque/payment instruction return charges of the amount specified in the Schedule herein for every such dishonour / return.
(iv) If the Borrower at any time wishes to replace a cheque with another then the Borrower will be required to pay the swap charges specified in the Schedule herein for every cheque replaced.
(v) In the event the Borrower requests the Bank, and the Bank agrees to, waive the requirement of Post Dated Cheques, the Borrower, as the case may be, shall pay any amount due hereunder and every part thereof on the concerned due dates at the place as desired by the Bank. The Borrower further undertakes that, if the Bank has to collect such amounts, the Borrower shall pay the collection charges as mentioned in the Schedule and Sanction letter herein for every such instalment or any other amount collected by the Bank.

7.4 The Schedule attached to this Agreement shall be an integral part of this Agreement and shall be read in conjunction with the terms and conditions contained herein.

❺ _____
Borrower

7.5 All payments of whatever nature (whether by way of principal, interest or otherwise) shall be made to the Bank in immediately available funds on the day on which they are due, without right of set off or counterclaim or deductions and free and net of all taxes, imposts and levies of any nature by whomsoever imposed, both present and future. All payments shall be made at the place specified by the Bank and shall be so paid as to enable the Bank to realize the sum on or before the due date. The payment shall be deemed to have been made only on realization and credit for payments shall be given only on realization.

7.6 The Bank shall be entitled to sell, assign or transfer the Bank's rights and obligations under this Agreement to any other person(s) of the Bank's choice in whole or in part and in such manner (by way of securitization, interbank participation or otherwise) and on such terms as the Bank may decide, without any notice to the Borrower. Any such arrangement shall conclusively bind the Borrower. Any cost in this behalf, whether on account of such sale, assignment or transfer or enforcement of rights and recovery of outstanding and dues shall be to the account of the Borrower. The Borrower undertakes to pay to third parties the difference between the Loan outstanding and the amount received by the Bank in the event of transfer of the portfolio to a third party.

7.7 The Borrower shall not be entitled to directly or indirectly assign the benefit or obligation of this Agreement without the prior written permission of the Bank.

7.8 The Borrower hereon agrees, confirms and undertakes that:

(i) The Bank shall, as it may deem appropriate and necessary, be entitled to disclose all or any: (a) information and data relating to the Borrower; (b) information or data relating to the Loan or any other credit facility/ies availed/to be availed by the Borrower from the Bank; (c) obligations assumed/to be assumed by the Borrower in relation to the Loan; (d) default, if any, committed by the Borrower in discharge of the aforesaid obligations, to any agency/credit bureau (the 'Agency') authorized in this behalf by the RBI.

(ii) The Borrower hereby gives specific consent to the Bank for disclosing / submitting the 'financial information' as defined in Section 3 (13) of the Insolvency and Bankruptcy Code, 2016 ('Code' for brief) read with the relevant Regulations/ Rules framed under the Code, as amended and in force from time to time and as specified there under from time to time, in respect of the said facilities availed from the Bank, from time to time, to any 'Information Utility' ('IU' for brief) as defined in Section 3 (21) of the Code, in accordance with the relevant Regulations framed under the Code, and directions issued by the Reserve Bank of India to the banks from time to time and hereby specifically agree to promptly authenticate the financial information submitted by the Bank, as and when requested by the concerned IU.

(iii) The Agency so authorized may use, process the aforesaid information and data disclosed by the Bank in the manner as deemed fit by them.

(iv) The Agency so authorized may furnish for consideration, the processed information and data or products there of prepared by them, to banks/ financial institutions and other credit grantors or registered users, as may be by RBI in this behalf.

(v) The information and data furnished by the Borrower to the Bank from time to time shall be complete, true and correct.

7.9 The Borrower hereby agrees that in case the Borrower commits a default in payment or repayment of any amounts in respect of the Loan, the Bank and/or RBI will have an unqualified right to disclose or publish the name/s (along with photograph and any other information) of the Borrower/s or the name/s (along with photograph and any other information) of the guarantor/s as defaulter/s in such manner and through such medium as the Bank and/or RBI in their absolute discretion may think fit.

7.10 Regulatory Declarations

The Borrower hereby declares to the Bank as follows:

1 Where the Borrower is an individual(s), none of the “Directors of the Bank” or their relatives is his/her business partner or guarantor.

The term “Directors of the Bank” for the purpose of this Sub-Clause 1 shall mean and include the Managing Director-cum-Chief Executive Officer (CEO), the top most officers of Business and Credit (presently the business head and credit head).

2 Where the Borrower is an individual/proprietor(s), he/she is not a director or relative of a director of the Bank or other banks

The term “Directors of other Banks” include (apart from Directors of commercial banks) Directors of Scheduled Co-operative Banks, Directors of subsidiaries / trustees of mutual funds / venture capital funds.

3 Where the Borrower is an individual/(s), he/she is not a relative of any “Specified Senior Officer” of the Bank.

The term “Specified Senior Officer” for the purpose of this Sub-Clause 3 means and include the top most senior officer (presently the business head and credit head) and his/her immediate next lower level officer in credit and business functions of the Bank and also includes the senior management of the Bank (as listed under the link “Senior Management” on the Bank's website www.dcbbank.com.

Substantial interest for the purpose of Sub-Clauses 1, 2 and 3 shall have the same meaning assigned to it in Section 5(ne) of the Banking Regulation Act, 1949.

Relative for the purpose of Sub-Clauses 1, 2 and 3 means spouse, father, mother (including step-mother), son (including step-son), son's wife, daughter (including step-daughter), daughter's husband, brother (including step-brother), brother's wife, sister (including step-sister), sister's husband, brother (including step-brother) of the spouse, sister (including step-sister) of the spouse.

4 In case where the above negative confirmations in Sub-Clauses 1, 2 and 3 are not true, then the Borrower shall provide a written declaration with details of such relationship to the Bank. If the details of such declaration change during the term of any facility or any part thereof then, the Borrower shall promptly provide a written declaration to the Bank of any such change.

5 The Borrower is not:

(a) on the Export Credit Guarantee Corporation's (ECGC's) specified approval list; or

(b) convicted under the provisions of Conservation of Foreign Exchange and Prevention of Smuggling Activities Act, 1974 or Foreign Exchange Management Act (FEMA); or

❻ _____ Borrower

(c) on RBI's defaulters / caution list; or
(d) on the Bank's defaulter list.

7.11 All notices, requests, demands, waivers and other communications required or permitted to be given under this Agreement shall be in writing and shall be deemed to have been duly given if (a) delivered personally, (b) mailed, certified or registered mail with postage prepaid, (c) sent by next-day or overnight mail/courier or delivered, (d) sent by telephony/fax or telegram, to the address of the Bank and the Borrower as stated herein and in the Schedule attached hereto, or (e) sent by email/sms on registered email id/mobile number.

7.12 Any delay in exercising or omission to exercise any right, power or remedy accruing to the Bank under this Agreement or any other Agreement or document shall not impair any such right, power or remedy and shall not be construed to be a waiver thereof or any acquiescence in any default; not shall the action or inaction of the Bank in respect of any default or any acquiescence by it in any default, affect or impair any right, power or remedy of the Bank in respect of any other default.

7.13 The Bank may at any time and without notice to the Borrower combine or consolidate all or any of the accounts held in the Borrower's name or any other account of which the Borrower is the (sole) beneficial owner whether in his/her/its own name or in the name of a commercial entity of which the Borrower is the sole proprietor, with any Branch or Branches of the Bank irrespective of the title of any such account or currency in which any such account may be dominated.

7.14 If there are two or more Borrowers, the Borrower's liabilities under this Agreement shall be joint and several.

7.15 Any provision of the Agreement hereof being or becoming illegal or unenforceable for any reason shall not affect the legality and enforceability of the remainder of the provisions of this Agreement.

7.16 All clause headings in this Agreement have been inserted for convenience of reference only and shall not affect the interpretation of the provisions of this Agreement.

7.17 If any dispute/difference arises between the Bank and the Borrower hereto during the subsistence of this Agreement or thereafter, in connection with any provision of this Agreement or regarding a question including but not limited to the questions whether the termination of this Agreement has been legitimate, the dispute/difference may be referred to arbitration of a sole arbitrator to be appointed by the Bank. The place of arbitration shall be the place (Jurisdiction) as mentioned in the Schedule and any award whether interim or final, shall be made, and shall be deemed for all purposes between the parties to be made at such place. The award including the interim award/s of the arbitrator shall be final and binding upon the parties concerned. The arbitration proceedings shall be governed by the Arbitration and Conciliation Act, 1996, as amended from time to time. The proceedings of arbitration shall be held in English language.

7.18 This Agreement shall be construed and governed in accordance with the laws of India. This Agreement shall be subject to the exclusive jurisdiction of the courts/tribunals situated at the place as mentioned in the Schedule hereto.

7.19. **INDEMNIFICATION**
The Borrower undertakes to indemnify and keep the Bank and its officers / employees / directors fully indemnified and harmless from and against all the consequences of breach of any of the terms, conditions, statements, undertakings representations and warranties of this Agreement as also of any of its representations or warranties not being found to be true at any point of time, including any actions, suits, claims, proceedings, damages, liabilities, losses, expenses or costs (hereinafter referred to as "**Claims**") faced, suffered or incurred by the Bank. The Borrower hereby accepts and acknowledges to have clearly agreed and understood that this indemnity would cover all acts and omissions on the part of the warranties and / or representations of the Borrower. Similarly, in the event of any claims being made on the Bank, on account of any breach of warranty, representations, non-compliance of any applicable law, unauthorised act, fraud, deed or thing done or omitted to be done or undertaking made by the Borrower or its employees, agents, being false, the Borrower undertakes to pay on first demand made by the Bank of any amount without any demur, reservation, contest, protest whatsoever within 7 (seven) days of the demand being made.

7.20 **Credit Information**
The Borrower also agrees that :
a) The Credit Information Companies (CICs) and any agency so authorised may use, process the said information and data disclosed by the Bank in the manner as deemed fit by them; and
b) The Credit Information Companies (CICs) and any other agency so authorised may furnish for consideration the processed information and data or products thereof prepared by them to banks / financial institutions and other credit granters or registered users, as may be specified by the Reserve Bank of India in this behalf.

❻ _____
Borrower

Schedule

Loan amount	₹ (in figures):	₹ (in words):

Loan Protect Policy premium financing applied for: ☐ Yes ☐ No

Loan Amount towards Loan Protect Policy premium financing: ₹ (in figures):_____ _____

₹ (in words) _____

To Borrower	₹ (in figures):
To Insurance Company	₹ (in figures):

Branch / Office:	
Loan tenure / Period:	
Interest rate:	% per annum
Default interest rate:	% per annum
Monthly repayment amount / EMI: ₹	
Processing fee: ₹	
Pre-closure charges: ₹	
Cheque/Payment instruction return charges: ₹	
Swap charges: ₹	
Collection charges: ₹	
Jurisdiction / Place of arbitration:	
Special conditions:	
EMI payment date:	First EMI date: EMI would be due on 1st / 4th / 10th of every month starting with ……. Last EMI date: ……

In witness hereof the Borrower has executed this Agreement on the date and the place first stated herein after verifying and understanding the contents of this Agreement.

INDIVIDUAL(S) AS BORROWER

Name	Signature ❾

Signed and delivered by the within named DCB Bank Limited.

by the hand of Mr. / Mrs. _____

Its Authorised Signatory

❼ Borrower/s

❽ Borrower/s

❿ _____ Borrower/s

DCB BANK

Sanction Letter

Date: DD / MM / YYYY

Mr. / Ms. / Mrs. _____
Address: _____
_____
_____
Phone: _____

Dear Customer,

Subject: Sanction of Micro Enterprise Loan (Application No. _____)

Thank you for selecting DCB Bank Limited (the "Bank") for your loan requirement. The Bank is pleased to communicate sanction of the loan, subject to terms and conditions (and changes therein as per Reserve Bank of India (RBI) directives / the Bank's policies from time to time) mentioned herein below and set out in Annexure hereto which is deemed to be a part of this sanction letter. This loan is also subject to the conditions that are contained in the documents, which you shall execute between and in favour of the Bank.

Type of Loan	Micro Enterprise Loan
Loan Amount excluding Approved Insurance Premium Amount	₹
Approved Insurance Premium Amount	₹
Sanctioned Loan Amount	₹
Tenure	months
Repayment	Equated Monthly Instalment (EMI)
EMI	₹
Interest rate	@ % p.a. Interest will be charged at monthly rests
Type of interest	Fixed rate of interest
Date of commencement of instalment	DD / MM / YYYY
Processing fee (inclusive of Applicable Tax) (Payable upfront and non-refundable)	₹ + GST (Presently at 18%)
Swap charges	₹ + GST (Presently at 18%)
Collection charges	₹ + GST (Presently at 18%)
Pre-closure charges	NIL
Guarantor name	

This sanction letter is issued on your request without any legal prejudice subject to positive / satisfactory report as per our credit department.

This sanction is valid for a period of thirty (30) days from the date of this letter and you are requested to complete the documentation and other formalities as per our requirements to avail the credit facility.

Kindly return the duplicate copy of this letter (enclosed) duly signed as acceptance of the terms and conditions as stated herein. On receipt of this duly accepted letter we shall prepare the loan agreement and other securing documents for execution by you. Disbursal shall be subject to your acceptance of this sanction letter and execution of necessary documents as the Bank may prescribe.

We look forward to a long and mutually beneficial relationship.

Yours sincerely,

For DCB Bank Limited

Relationship Manager, AIB / Branch Manager / Credit Analyst **CROPS (Non-Retail)**

All the terms and conditions stipulated herein and the annexure to the letter are acceptable to me/us.

Signature: _____ **Signature:** _____

Applicant's Name: _____ **Co-Applicant's Name:** _____

Signature: _____

Guarantor Name: _____

Applicant(s) & Guarantor(s)

Applicant(s) & Guarantor(s)

Applicant(s) & Guarantor(s)

Annexure

Other Terms and Conditions:

1. The facility sanctioned hereby is repayable on demand and the terms and conditions stipulated including but not limited to pricing of the facility are subject to change without any notice.
2. The Bank reserves its right to share information regarding the account / securities / guarantors with banks / RBI / Credit Information Companies / CERSAI / Information Utility (IU) / Institutions and/or any statutory / regulatory body / authority in the normal course of business. This also includes the right to share information on the financial affairs of the account with any other bank/s from whom you have availed / intend to avail any kind of facility – financial or otherwise. The Bank also reserves the right to demand and receive similar information from other bank/s with whom you deal or have dealt in line with applicable regulatory and statutory guidelines. You and your guarantor(s) shall promptly authenticate the financial information submitted by the Bank, as and when requested by the concerned Information Utility (IU).
3. Payment of interest, commission, charges and other costs to the Bank shall be net of all statutory taxes / payments, as applicable from time to time and all such applicable statutory taxes / payments (Goods and Services Tax also included) due / payable to be borne by you which will be in addition to fees, commission, charges, interest and other costs of the Bank.
4. You acknowledge and agree that the interest rate may change inter alia in case of any of the following:
   a. Delay in repayment,
   b. Delay in regularisation of over limit,
   c. Return of cheques (outward/inward),
   d. Non-submission of stock statements,
   e. Non-submission of documents requested by the Bank,
   f. Delay in submission of documents for renewal of facilities,
   g. Development of Letter of Credit,
   h. Invocation of Bank Guarantee,
   i. Credit deterioration in another loan with the Bank,
   j. Credit deterioration reported by another bank,
   k. Name appearing in negative list / defaulter list of RBI, ECGC, etc.,
   l. Inaccuracies in documents submitted to the Bank,
   m. Routing of transactions to another bank account without the Bank's prior approval,
   n. Reduction in sales turnover,
   o. Any additional credit facility availed by borrower and not updated to the Bank in time.
   p. Any regulatory/statutory changes affecting the industry, and/or

   Any other matter that is likely to affect the repayment capacity, timeliness, etc.
5. Processing Fee will be collected as per the Bank's rule. The Bank will deduct processing fees from the disbursement amount. The processing fee is non-refundable under any circumstances whatsoever.
6. The Bank will deduct the Insurance Premium (i.e. Approved Insurance Premium Amount) from the disbursement amount.
7. The insurance purchased or proposed to be purchased by you through the Bank, if any, will be purely your voluntary action and is not linked to availment of any facility from the Bank. Any grievance, claim, query, complaint or issue pertaining to your insurance policy would lie solely with the relevant insurance company only, at its discretion and the decision of the insurance company shall be final and binding in all such cases. The Bank has no role or risk participation in this regard and therefore, the Bank shall not be responsible and liable in any manner whatsoever.
8. You are hereby declaring and undertaking that no consideration in cash has been paid / will be paid in lieu of the credit facilities granted / proposed to be granted.
9. You shall inform the Bank in writing about the change in address, telephone, mobile number, job, business, profession, as the case may be immediately after such change. Further, the Bank on receipt of such information shall update the respective details and reserves the right to use such updated information for any communication with you.
10. You are prohibited from using the loan amount or any part thereof for any purpose other than for which it has been sanctioned.
11. The Bank does not accept any responsibility nor liability for any loss or damage arising from any service failures or disruptions (including but not limited to, loss of data) attributable to a systems or equipment failure or due to reliance by the Bank's third party products or interdependencies including but not limited to electricity or telecommunications and for any consequences arising out of interruption of its business by acts of God, riots, civil commotion, insurrections, wars or any other causes beyond its control or by any strikes or lockouts.
12. You acknowledge and agree that in the absence of manifest error, the Bank's records (including, without limitation, account balances, transaction details / facility limits) shall be conclusive proof of the matters to which they relate and you shall honour all your obligations to the satisfaction of the Bank.
13. Prior to disbursement of the loan, you are required to submit duly signed and executed National Automated Clearing House (NACH) mandate and also set of security Post Dated Cheques (PDCs) as per the Bank's policy, and execute all necessary documentation as prescribed by the Bank. The duly executed NACH mandate and security PDCs issued by you favouring the Bank will be used towards appropriation of any charges and outstanding dues pertaining to this loan.
14. You agree to furnish any additional documents / information as and when required by the Bank.
15. You agree to forthwith inform the Bank in writing about any new or additional borrowing from any other bank(s)/ financier(s).
16. You confirm that you are a citizen of India.
17. The Bank will be informed in a situation if you apply for immigration for future residence outside the country.
18. EMI is payable on the 1st /4th / 10th day of every month. If the loan is disbursed in between 1st to10th, 11th to 20th and 21st to 31st EMI date will be deducted on 1st, 4th and 10th of preceding month. Last EMI will be variable.
19. All payments to be made favouring "DCB Bank Ltd. A/c. _____ (Applicant name)
20. Pre-closure will be allowed after six months from the date of full disbursement.

20. Pre-closure will be allowed after six months from the date of full disbursement.
21. We shall be entitled to debit the amount of all costs, charges and expenses to your account and such amounts shall stand secured by all securities given to or created in our favour in connection with the facilities. You shall indemnify and keep us fully and completely indemnified from time to time against the liabilities including all costs, charges and expenses stipulated herein whether debited to your account or not.
22. The Bank reserves the right to review all credit facilities at any time and from time to time at its absolute discretion. Notwithstanding any other provisions of this letter and any other document, the Bank shall have the right at its absolute discretion without any prior notice, to on an immediate basis vary, terminate, reduce, suspend or cancel these facilities and to cease to make available any further utilization of these facilities. You shall abide by such terms and conditions as the Bank may stipulate from time to time.
23. Any failure to exercise or delay in exercising any of the Bank's rights hereunder or under any other documents will not act as a waiver of that or any other right nor shall any single partial exercise preclude any future exercise of that right.
24. If you submit a request for cancellation of loan application, for any reason whatsoever, after the disbursement Demand Draft has been prepared basis the Disbursement Request Form (DRF) signed by you, the Bank will recover the Processing Fee, applicable EMI and other applicable charges from you.
25. Goods and Services Tax Number (GSTN) (if applicable) needs to be updated with the Bank before initiating any transaction to get GST credit (if applicable) under the GST provisions. Only the GSTN of the primary applicant shall be updated with the Bank and the GST invoice shall be issued by the Bank only in the name of primary applicant.
26. Any new loan / credit facility availed by you from any financial institution/ bank post disbursement of this loan will be duly informed to the Bank within a month of availing that loan / credit facility.
27. The Borrower agrees and declares that the insurance policy purchased or proposed to be purchased by him/her/them through the Bank, if any, will be purely his/her/their voluntary action and is not linked to availment of any credit facility from the Bank. Any grievance, claim, query, complaint or issue pertaining to insurance of policy would lie solely with the relevant insurance company only, at its discretion and the decision of the insurance company shall be final and binding in all such cases. The Bank has no role or risk participation in this regard and therefore, the Bank shall not be responsible and liable in any manner whatsoever.
28. The Bank will deduct the Insurance Premium (i.e. Approved and Accepted Insurance Premium Amount) from the disbursement amount.
29. The premium amount for covering insurance as specified hereinabove has been offered to you as a loan facility by the Bank and the same will be paid to the insurance company subject to necessary clearance from the insurance company. The benefit will be accrued to you only on issuance of policy by the insurance company. The Bank is not responsible and liable for happening of any event/deficiency from the disbursement date or during the period of the policy by insurance company. The sum assured may vary as per the date of issuance based on date of birth or as per the terms and conditions of the policy and the insurance partner chosen.
30. The Borrower expressly agrees that in case of incomplete insurance application form received by the insurance partner or in case of medical requirement being raised by the insurance partner, the Bank will not be held responsible for non-issuance of the policy. Also, in case the requirement is not completed within a designated time, the premium remitted to insurance partner will be refunded by the insurance partner and adjusted in the loan account and further outstanding balance, if any, shall be claimed from the Borrower or if loan account is closed, the refund amount shall be paid to the Borrower through other means like issuing of demand draft.
31. The Borrower expressly agrees and declares that the Bank is a first loss payee and has a first claim on the proceeds of the policy and the Bank shall have a right to appropriate the amount payable by the Borrower under the aforesaid Loan to the Bank; from the sum received from the insurance company; in the event of death of the Borrower or happening of any of the events as stipulated under the policy and the balance amount after appropriating the dues of the Bank shall be paid to the beneficiary/nominee nominated by the Borrower .
32. The Bank shall be accountable for inappropriate behaviour by its employees or employees of the outsourced agency and shall provide timely grievance redressal.
33. . Grievance Redressal: Level 1 includes call center numbers: (022) 6899 7777 or (040) 6815 7777. The borrower may also contact the Nodal officer of the Bank if the customer is not satisfied with the response offered to the customer in Level 1. Email: - nodal.officer@dcbbank.com
34. I/We agree that apart from execution of loan documents/agreements through physical mode/by means of my/our wet signature, Bank can also provide eStamping & eSigning facilities, so that loan documents/agreements to be executed by me/us can be stamped electronically and executed by us through electronic mode.

Signature: _____ **Signature:** _____

Applicant's Name: _____ **Co-Applicant's Name:** _____

Signature: _____

Guarantor Name: _____

CUSTOMER COPY

DCB BANK

Sanction Letter

Date: DD / MM / YYYY

Mr. / Ms. / Mrs. _____
Address: _____
_____
_____
Phone: _____

Dear Customer,

Subject: Sanction of Micro Enterprise Loan (Application No. _____)

Thank you for selecting DCB Bank Limited (the "Bank") for your loan requirement. The Bank is pleased to communicate sanction of the loan, subject to terms and conditions (and changes therein as per Reserve Bank of India (RBI) directives / the Bank's policies from time to time) mentioned herein below and set out in Annexure hereto which is deemed to be a part of this sanction letter. This loan is also subject to the conditions that are contained in the documents, which you shall execute between and in favour of the Bank.

Type of Loan	Micro Enterprise Loan
Loan Amount excluding Approved Insurance Premium Amount	₹
Approved Insurance Premium Amount	₹
Sanctioned Loan Amount	₹
Tenure	months
Repayment	Equated Monthly Instalment (EMI)
EMI	₹
Interest rate	@ % p.a. Interest will be charged at monthly rests
Type of interest	Fixed rate of interest
Date of commencement of instalment	DD / MM / YYYY
Processing fee (inclusive of Applicable Tax) (Payable upfront and non-refundable)	₹ + GST (Presently at 18%)
Swap charges	₹ + GST (Presently at 18%)
Collection charges	₹ + GST (Presently at 18%)
Pre-closure charges	NIL
Guarantor name	

This sanction letter is issued on your request without any legal prejudice subject to positive / satisfactory report as per our credit department.

This sanction is valid for a period of thirty (30) days from the date of this letter and you are requested to complete the documentation and other formalities as per our requirements to avail the credit facility.

Kindly return the duplicate copy of this letter (enclosed) duly signed as acceptance of the terms and conditions as stated herein. On receipt of this duly accepted letter we shall prepare the loan agreement and other securing documents for execution by you. Disbursal shall be subject to your acceptance of this sanction letter and execution of necessary documents as the Bank may prescribe.

We look forward to a long and mutually beneficial relationship.

Yours sincerely,

For DCB Bank Limited

Relationship Manager, AIB / Branch Manager / Credit Analyst **CROPS (Non-Retail)**

All the terms and conditions stipulated herein and the annexure to the letter are acceptable to me/us.

Signature: _____ **Signature:** _____

Applicant's Name: _____ **Co-Applicant's Name:** _____

Signature: _____

Guarantor Name: _____

Applicant(s) & Guarantor(s)

Applicant(s) & Guarantor(s)

Applicant(s) & Guarantor(s)

Annexure

Other Terms and Conditions:

1. The facility sanctioned hereby is repayable on demand and the terms and conditions stipulated including but not limited to pricing of the facility are subject to change without any notice.
2. The Bank reserves its right to share information regarding the account / securities / guarantors with banks / RBI / Credit Information Companies / CERSAI / Information Utility (IU) / Institutions and/or any statutory / regulatory body / authority in the normal course of business. This also includes the right to share information on the financial affairs of the account with any other bank/s from whom you have availed / intend to avail any kind of facility – financial or otherwise. The Bank also reserves the right to demand and receive similar information from other bank/s with whom you deal or have dealt in line with applicable regulatory and statutory guidelines. You and your guarantor(s) shall promptly authenticate the financial information submitted by the Bank, as and when requested by the concerned Information Utility (IU).
3. Payment of interest, commission, charges and other costs to the Bank shall be net of all statutory taxes / payments, as applicable from time to time and all such applicable statutory taxes / payments (Goods and Services Tax also included) due / payable to be borne by you which will be in addition to fees, commission, charges, interest and other costs of the Bank.
4. You acknowledge and agree that the interest rate may change inter alia in case of any of the following:
   a. Delay in repayment,
   b. Delay in regularisation of over limit,
   c. Return of cheques (outward/inward),
   d. Non-submission of stock statements,
   e. Non-submission of documents requested by the Bank,
   f. Delay in submission of documents for renewal of facilities,
   g. Development of Letter of Credit,
   h. Invocation of Bank Guarantee,
   i. Credit deterioration in another loan with the Bank,
   j. Credit deterioration reported by another bank,
   k. Name appearing in negative list / defaulter list of RBI, ECGC, etc.,
   l. Inaccuracies in documents submitted to the Bank,
   m. Routing of transactions to another bank account without the Bank's prior approval,
   n. Reduction in sales turnover,
   o. Any additional credit facility availed by borrower and not updated to the Bank in time.
   p. Any regulatory/statutory changes affecting the industry, and/or

   Any other matter that is likely to affect the repayment capacity, timeliness, etc.
5. Processing Fee will be collected as per the Bank's rule. The Bank will deduct processing fees from the disbursement amount. The processing fee is non-refundable under any circumstances whatsoever.
6. The Bank will deduct the Insurance Premium (i.e. Approved Insurance Premium Amount) from the disbursement amount.
7. The insurance purchased or proposed to be purchased by you through the Bank, if any, will be purely your voluntary action and is not linked to availment of any facility from the Bank. Any grievance, claim, query, complaint or issue pertaining to your insurance policy would lie solely with the relevant insurance company only, at its discretion and the decision of the insurance company shall be final and binding in all such cases. The Bank has no role or risk participation in this regard and therefore, the Bank shall not be responsible and liable in any manner whatsoever.
8. You are hereby declaring and undertaking that no consideration in cash has been paid / will be paid in lieu of the credit facilities granted / proposed to be granted.
9. You shall inform the Bank in writing about the change in address, telephone, mobile number, job, business, profession, as the case may be immediately after such change. Further, the Bank on receipt of such information shall update the respective details and reserves the right to use such updated information for any communication with you.
10. You are prohibited from using the loan amount or any part thereof for any purpose other than for which it has been sanctioned.
11. The Bank does not accept any responsibility nor liability for any loss or damage arising from any service failures or disruptions (including but not limited to, loss of data) attributable to a systems or equipment failure or due to reliance by the Bank's third party products or interdependencies including but not limited to electricity or telecommunications and for any consequences arising out of interruption of its business by acts of God, riots, civil commotion, insurrections, wars or any other causes beyond its control or by any strikes or lockouts.
12. You acknowledge and agree that in the absence of manifest error, the Bank's records (including, without limitation, account balances, transaction details / facility limits) shall be conclusive proof of the matters to which they relate and you shall honour all your obligations to the satisfaction of the Bank.
13. Prior to disbursement of the loan, you are required to submit duly signed and executed National Automated Clearing House (NACH) mandate and also set of security Post Dated Cheques (PDCs) as per the Bank's policy, and execute all necessary documentation as prescribed by the Bank. The duly executed NACH mandate and security PDCs issued by you favouring the Bank will be used towards appropriation of any charges and outstanding dues pertaining to this loan.
14. You agree to furnish any additional documents / information as and when required by the Bank.
15. You agree to forthwith inform the Bank in writing about any new or additional borrowing from any other bank(s)/ financier(s).
16. You confirm that you are a citizen of India.
17. The Bank will be informed in a situation if you apply for immigration for future residence outside the country.
18. EMI is payable on the 1st /4th / 10th day of every month. If the loan is disbursed in between 1st to10th, 11th to 20th and 21st to 31st EMI date will be deducted on 1st, 4th and 10th of preceding month. Last EMI will be variable.
19. All payments to be made favouring "DCB Bank Ltd. A/c. _____ (Applicant name)
20. Pre-closure will be allowed after six months from the date of full disbursement.

20. Pre-closure will be allowed after six months from the date of full disbursement.
21. We shall be entitled to debit the amount of all costs, charges and expenses to your account and such amounts shall stand secured by all securities given to or created in our favour in connection with the facilities. You shall indemnify and keep us fully and completely indemnified from time to time against the liabilities including all costs, charges and expenses stipulated herein whether debited to your account or not.
22. The Bank reserves the right to review all credit facilities at any time and from time to time at its absolute discretion. Notwithstanding any other provisions of this letter and any other document, the Bank shall have the right at its absolute discretion without any prior notice, to on an immediate basis vary, terminate, reduce, suspend or cancel these facilities and to cease to make available any further utilization of these facilities. You shall abide by such terms and conditions as the Bank may stipulate from time to time.
23. Any failure to exercise or delay in exercising any of the Bank's rights hereunder or under any other documents will not act as a waiver of that or any other right nor shall any single partial exercise preclude any future exercise of that right.
24. If you submit a request for cancellation of loan application, for any reason whatsoever, after the disbursement Demand Draft has been prepared basis the Disbursement Request Form (DRF) signed by you, the Bank will recover the Processing Fee, applicable EMI and other applicable charges from you.
25. Goods and Services Tax Number (GSTN) (if applicable) needs to be updated with the Bank before initiating any transaction to get GST credit (if applicable) under the GST provisions. Only the GSTN of the primary applicant shall be updated with the Bank and the GST invoice shall be issued by the Bank only in the name of primary applicant.
26. Any new loan / credit facility availed by you from any financial institution/ bank post disbursement of this loan will be duly informed to the Bank within a month of availing that loan / credit facility.
27. The Borrower agrees and declares that the insurance policy purchased or proposed to be purchased by him/her/them through the Bank, if any, will be purely his/her/their voluntary action and is not linked to availment of any credit facility from the Bank. Any grievance, claim, query, complaint or issue pertaining to insurance of policy would lie solely with the relevant insurance company only, at its discretion and the decision of the insurance company shall be final and binding in all such cases. The Bank has no role or risk participation in this regard and therefore, the Bank shall not be responsible and liable in any manner whatsoever.
28. The Bank will deduct the Insurance Premium (i.e. Approved and Accepted Insurance Premium Amount) from the disbursement amount.
29. The premium amount for covering insurance as specified hereinabove has been offered to you as a loan facility by the Bank and the same will be paid to the insurance company subject to necessary clearance from the insurance company. The benefit will be accrued to you only on issuance of policy by the insurance company. The Bank is not responsible and liable for happening of any event/deficiency from the disbursement date or during the period of the policy by insurance company. The sum assured may vary as per the date of issuance based on date of birth or as per the terms and conditions of the policy and the insurance partner chosen.
30. The Borrower expressly agrees that in case of incomplete insurance application form received by the insurance partner or in case of medical requirement being raised by the insurance partner, the Bank will not be held responsible for non-issuance of the policy. Also, in case the requirement is not completed within a designated time, the premium remitted to insurance partner will be refunded by the insurance partner and adjusted in the loan account and further outstanding balance, if any, shall be claimed from the Borrower or if loan account is closed, the refund amount shall be paid to the Borrower through other means like issuing of demand draft.
31. The Borrower expressly agrees and declares that the Bank is a first loss payee and has a first claim on the proceeds of the policy and the Bank shall have a right to appropriate the amount payable by the Borrower under the aforesaid Loan to the Bank; from the sum received from the insurance company; in the event of death of the Borrower or happening of any of the events as stipulated under the policy and the balance amount after appropriating the dues of the Bank shall be paid to the beneficiary/nominee nominated by the Borrower .
32. The Bank shall be accountable for inappropriate behaviour by its employees or employees of the outsourced agency and shall provide timely grievance redressal.
33. . Grievance Redressal: Level 1 includes call center numbers: (022) 6899 7777 or (040) 6815 7777. The borrower may also contact the Nodal officer of the Bank if the customer is not satisfied with the response offered to the customer in Level 1. Email: - nodal.officer@dcbbank.com
34. I/We agree that apart from execution of loan documents/agreements through physical mode/by means of my/our wet signature, Bank can also provide eStamping & eSigning facilities, so that loan documents/agreements to be executed by me/us can be stamped electronically and executed by us through electronic mode.

Signature: _____ **Signature:** _____

Applicant's Name: _____ **Co-Applicant's Name:** _____

Signature: _____

Guarantor Name: _____

DCB BANK

STANDING INSTRUCTIONS FORM

To,
DCB Bank Limited,
_____

Dear Sir / Madam,

Re: Standing Instruction for Micro Enterprise Loan EMI's

I/We hereby request you to debit my/our account no._____ in the name of

_____ held with DCB Bank Limited

_____ branch towards the Equated Monthly Instalments (EMIs) for the Micro Enterprise Loan availed from the Bank, the details of which are given hereunder.

Borrower's Name:

Upper limit for EMI amount (in Figure):

Upper limit for EMI amount (in Words):

Number of instalments:

I/We have also enclosed 2 (two) Security Cheques for the EMI along with this letter.

I/We undertake to keep my/our account funded for executing the instructions given above.

Thanking you

Yours sincerely,

Name(s) of the Account Holder(s):	Signature(s) of the Account Holder(s):
1. _____	_____
2. _____	_____
3. _____	_____

Date: _____

For Bank Use: (To be filled in by Bank officer)

Loan A/c No: _____

EMI Start Date: _____

EMI End Date: _____

DCB BANK

STANDING INSTRUCTIONS FORM

To,
DCB Bank Limited,
_____

Dear Sir / Madam,

Re: Standing Instruction for Micro Enterprise Loan EMI's

I/We hereby request you to debit my/our account no._____ in the name of

_____ held with DCB Bank Limited

_____ branch towards the Equated Monthly Instalments (EMIs) for the Micro Enterprise Loan availed from the Bank, the details of which are given hereunder.

Borrower's Name:

Upper limit for EMI amount (in Figure):

Upper limit for EMI amount (in Words):

Number of instalments:

I/We have also enclosed 2 (two) Security Cheques for the EMI along with this letter.

I/We undertake to keep my/our account funded for executing the instructions given above.

Thanking you

Yours sincerely,

Name(s) of the Account Holder(s):	Signature(s) of the Account Holder(s):
1. _____	_____
2. _____	_____
3. _____	_____

Date: _____

For Bank Use: (To be filled in by Bank officer)

Loan A/c No: _____

EMI Start Date: _____

EMI End Date: _____

DCB BANK

Security Post Dated Cheques (SPDCs) Submission Form

To
The Manager
DCB Bank Limited
_____ Branch

Dear Sir / Madam,

Sub: Submission of SPDCs in Micro Enterprise Loan _____

I / We _____ thank you for your credit facility offered vide your Sanction Letter dated _____ and would like to request you for disbursing the Micro Enterprise Loan.

The following crossed (A/c Payee) Security Post Dated Cheques (SPDCs) handed over to _____ in favour of "DCB Bank Ltd. A/C <_____ (Applicant name)>" as per the details below.

Sr. No	Cheque Details		Cheque Date		No of Cheques	Name of the Bank & Branch	EMI / Pre-EMI / Security	Amount Rs.
	From	To	From	To				

Name of Applicant _____ Signature _____

Name of Co-applicant _____ Signature _____

Date: _____

Name of the Business Correspondent (BC): _____

BC Authorised Signatory Name: _____

BC Authorised Signatory Signature: _____

Date: _____

DCB BANK

Disbursal Request Form

Applicant's Name: _____ Application No.: _____

Request you to disburse my/our Micro Enterprise loan that was sanctioned by you vide your Sanction Letter dated _____ as per the details given below. I/We agree for deducting necessary charges/fee of ₹ _____/- from my/our loan amount and request you to disburse the remaining balance loan amount through Pay Order / Cheque in favor of following persons:-

Sr. No.	In Favour of	Bank	A/c No	Payable at	Amount Rs.
1					
2					
3					
4					
5					

Name of Applicant _____ Signature _____

Name of Co-applicant _____ Signature _____

Date: _____

I/We hereby acknowledge the receipt of the following Pay Orders :

Pay Order Number _____ Pay Order Date _____
Pay Order Number _____ Pay Order Date _____
Pay Order Number _____ Pay Order Date _____
Pay Order Number _____ Pay Order Date _____
Pay Order Number _____ Pay Order Date _____

Name of Applicant _____ Signature _____

Name of Co-applicant _____ Signature _____

DCB BANK

Dual Signature and Dual Name Affidavit

I _____ Son / Wife / Father / Daughter / Brother / Mother / Husband of

Mr _____Residing at _____

_____ aged about _____ years, do hereby solemnly state as under:-

1. That I have signed in the following manner on various occasions. I state that both the signatures written below are mine and are valid and that the same shall bind me at all times.

Signatures: (a). _____

(b). _____

2. That I am also known as _____ and I say that solemnly affirmed and declared at _____ on this _____ day of _____ 20 .

_____

DEPONENT

VERIFICATION

Verified at _____ on this _____ day of _____ 20_____ that the contents of the above affidavit are true and correct to the best of my knowledge and belief, no part of it is false and nothing material has been concealed there from.

_____

DEPONENT

DCB BANK

Declaration for signing the documents in vernacular language / thumb impression
[From the Translator and Borrower(s) / Guarantor(s)]

The Manager
DCB Bank Limited
_____
_____
_____

Place:
Date:

Dear Sir,

This is to confirm that I have read, translated and explained in _____ language known to Mr. / Ms. _____ the following documents and after having understood the same, he / she / they have voluntarily and without any undue influence or coercion signed / affixed his / her / their signature / thumb impression in my presence.

List of documents

_____
(Translator)

This is to confirm that Mr. / Ms. _____ has read, translated and explained in _____ language known to me/us, the documents mentioned hereinabove and after having understood the same, I/we, Mr. / Ms. _____ have voluntarily and without any undue influence or coercion signed / affixed my / our signature / thumb impression in his/her presence.

_____
[Borrower(s) / Guarantor(s)]

Self-Certification for Individual FATCA / CRS Declaration Form

Part I (Please fill in the country for each of the following)

1.	a) Country of Birth	
	b) Country of Citizenship	
	c) Country of Residence for Tax Purposes	
	d) Country of Current Residence (Overseas Country for NRI)	
2.	U.S. Person (Citizen or Resident of the United States of America)	☐ Yes ☐ No

3. Customer Declaration (Applicable only if customer's Country of Current Residence is different from Country of Residence for Tax Purposes)

I certify that:

☐ I have recently shifted to _____ (Name of the Country) and as per the applicable tax regulations, I am not tax resident of the Country where I am currently residing. I am tax resident of _____ (Name of the Country)

OR

☐ I do not fulfil the conditions of tax residency of the country where I am currently residing. I am tax resident of _____ _____ (Name of the Country)

OR

☐ Any other reason (please specify)

_____

_____

_____

Part II Please note

a. If in all fields above, the country mentioned by you is India (except in case of seafarers) and if you do NOT have U.S. person status, please proceed to Part III for signature.

b. If for any of the above fields, the country mentioned by you is NOT India and/or if your U.S. person status is Yes, please provide the Tax Payer Identification Number (TIN) or functional equivalent as issued in the specific country in the table below:

i)	☐ TIN	
	☐ Functional Equivalent (Please specify name and number)	
	Country of Issue	
ii)	☐ TIN	
	☐ Functional Equivalent (Please specify name and number)	
	Country of Issue	
iii)	☐ TIN	
	☐ Functional Equivalent (Please specify name and number)	
	Country of Issue	

c. If you satisfy the criteria mentioned in Part II (b) but do not have Taxpayer Identification Number / functional equivalent, please option given below:

☐ **I am a person resident out of India with (choose any one of the option below, only if applicable):**

☐ Country not issuing TIN / Functional Equivalent _____
(mention ¨ Visa / ¨ Residence / ¨ Work permit number)

☐ Dependent visa _____ (mention dependent visa number)

- ☐ Dependent visa _____ (mention dependent visa number)
- ☐ Student visa _____ (mention student visa number)
- ☐ Seafarer status _____ (mention Continuous Discharge Certificate (CDC) / visa number)
- ☐ Travelling to the country of residence for the first time _____ (mention visa number. TIN / functional equivalent to be communicated to the Bank within 90 days, else account will get closed).

OR

☐ **I am a person resident in India as well as resident for tax purposes in India (please also fill Part IV self-certification)**

d. If you are declaring U.S. person status as 'No' but your country of birth is U.S., please provide document evidencing Relinquishment of Citizenship. If not available, provide reason/s for the same _____

(Please also fill Part IV self-certification).

Part III Customer Declaration (Applicable for all customers)

i. Under penalty of perjury, I certify that:

1. The applicant is (i) an applicant taxable as a U.S. person under the laws of the United States of America ("U.S.") or any state or political subdivision thereof or therein, including the District of Columbia or any other states of the U.S., (ii) an estate the income of which is subject to U.S. federal income tax regardless of the source thereof. (This clause is applicable only if the account holder is identified as a U.S. person).

OR

2. The applicant is taxable as a tax resident under the laws of country outside India. (This clause is applicable only if the account holder is a tax resident outside of India).

ii. I understand that the Bank is relying on this information for the purpose of determining the status of the applicant named above in compliance with FATCA / CRS. The Bank is not able to offer any tax advice on CRS or FATCA or its impact on the applicant. I shall seek advice from professional tax advisor for any tax questions.

iii. I agree to submit a new form within 30 days if any information or certification on this form becomes incorrect.

iv. I agree that as may be required by domestic regulators / tax authorities, the Bank may also be required to inform reportable details to Central Board of Direct Taxes (CBDT) or close or suspend my account.

v. I certify that I provide the information on this form and to the best of my knowledge and belief the certification is true, correct, and complete including the taxpayer identification number / functional equivalent number of the applicant.

Name: _____

Date (DD/MM/YYYY): Signature

Part IV Self Certification (Not applicable for NRI customers except for point (b) below)

To be filled only if-

(a) Any of the indicia parameters is outside India and TIN or functional equivalent is not available since not a resident for tax purpose outside India, or

(b) Country of birth is U.S. and U.S. person is mentioned as "No" in Part I

I confirm that I am neither a U.S. person nor a resident for tax purpose in any country other than India, though one or more parameters suggest my relation with the country outside India. Therefore, I am providing the following document as proof of my citizenship and residency in India.

_____
Signature

Document Proof submitted (Please tick document being submitted)

☐ Passport ☐ Voter's Identity Card ☐ PAN Card ☐ Driving License

☐ UIDAI Letter ☐ NREGA Job Card ☐ Govt. Issued ID Card

Note:

The term United States (U.S.) person means:

a. An individual, being a citizen or resident of the United States of America;

b. Partnership or corporation organized in the United States of America or under the laws of the United States of America of any State thereof;

c. A trust if: (i) a court within the United States of America would have authority under applicable law to render orders or judgements concerning substantially all issues regarding administration of the trust; and (ii) one or more U.S. persons have the authority to control all substantial decisions of the trust;

d. An estate of a decedent who was a citizen or resident of the United States of America.

Functional equivalent of TIN includes the following:

A social security number / national insurance number / citizen or personal identification code or number / resident registration number

DCB BANK

UMRN | Date D D M M Y Y Y Y

Sponsor Bank Code: DCBL0000037 | ◯ Create ◯ Modify ◯ Cancel

Utility Code: NACH00000000001085 | I/We authorize: DCB Bank Limited (Credit Administration)

To debit (tick ✓): SB / CA / CC / SB-NRE / SB-NRO / Other | Bank a/c number

with Bank | IFSC/MICR

An amount of Rupees | ₹

DEBIT TYPE ☐ Fixed Amount ☑ Maximum Amount **FREQUENCY** ☑ Monthly ☐ Quarterly ☐ Half-Yearly ☐ Yearly ☐ As & when presented

Loan No. | Customer Name

1. I agree for the debit of mandate processing charges by the bank whom I am authorizing to debit my account as per latest schedule of charges of the bank. 2. This is to confirm that the declaration has been carefully read, understood and made by me / us. I am authorising the user entity / Corporate to debit my account, based on the instructions as agreed and signed by me. 3. I have understood that I am authorised to cancel / amend this mandate by appropriately communicating the cancellation / amendment request to the user entity / corporate or the bank where I have authorised the debit.

From D D M M Y Y Y Y

To D D M M Y Y Y Y

Or ☐ Until Cancelled

Phone No.

Signature Primary Account holder | Signature of Account holder | Signature of Account holder

1. Name as in bank records 2. Name as in bank records 3. Name as in bank records

DCB BANK

UMRN | Date D D M M Y Y Y Y

Sponsor Bank Code: DCBL0000037 | ◯ Create ◯ Modify ◯ Cancel

Utility Code: NACH00000000001085 | I/We authorize: DCB Bank Limited (Credit Administration)

To debit (tick ✓): SB / CA / CC / SB-NRE / SB-NRO / Other | Bank a/c number

with Bank | IFSC/MICR

An amount of Rupees | ₹

DEBIT TYPE ☐ Fixed Amount ☑ Maximum Amount **FREQUENCY** ☑ Monthly ☐ Quarterly ☐ Half-Yearly ☐ Yearly ☐ As & when presented

Loan No. | Customer Name

1. I agree for the debit of mandate processing charges by the bank whom I am authorizing to debit my account as per latest schedule of charges of the bank. 2. This is to confirm that the declaration has been carefully read, understood and made by me / us. I am authorising the user entity / Corporate to debit my account, based on the instructions as agreed and signed by me. 3. I have understood that I am authorised to cancel / amend this mandate by appropriately communicating the cancellation / amendment request to the user entity / corporate or the bank where I have authorised the debit.

From D D M M Y Y Y Y

To D D M M Y Y Y Y

Or ☐ Until Cancelled

Phone No.

Signature Primary Account holder | Signature of Account holder | Signature of Account holder

1. Name as in bank records 2. Name as in bank records 3. Name as in bank records

DCB BANK

UMRN | Date D D M M Y Y Y Y

Sponsor Bank Code: DCBL0000037 | ◯ Create ◯ Modify ◯ Cancel

Utility Code: NACH00000000001085 | I/We authorize: DCB Bank Limited (Credit Administration)

To debit (tick ✓): SB / CA / CC / SB-NRE / SB-NRO / Other | Bank a/c number

with Bank | IFSC/MICR

An amount of Rupees | ₹

DEBIT TYPE ☐ Fixed Amount ☑ Maximum Amount **FREQUENCY** ☑ Monthly ☐ Quarterly ☐ Half-Yearly ☐ Yearly ☐ As & when presented

Loan No. | Customer Name

1. I agree for the debit of mandate processing charges by the bank whom I am authorizing to debit my account as per latest schedule of charges of the bank. 2. This is to confirm that the declaration has been carefully read, understood and made by me / us. I am authorising the user entity / Corporate to debit my account, based on the instructions as agreed and signed by me. 3. I have understood that I am authorised to cancel / amend this mandate by appropriately communicating the cancellation / amendment request to the user entity / corporate or the bank where I have authorised the debit.

From D D M M Y Y Y Y

To D D M M Y Y Y Y

Or ☐ Until Cancelled

Phone No.

Signature Primary Account holder | Signature of Account holder | Signature of Account holder

1. Name as in bank records 2. Name as in bank records 3. Name as in bank records

LETTER OF LIEN AND SET OFF

DCB BANK LIMITED
CREDIT OPERATIONS - NON RETAIL

_____

Place : _____

Date : _____

Dear Sir/s,

In consideration of your DCB Bank Limited ("Bank") making from time to time advances to me / us / and / or giving me / us / _____ ("Borrower") banking accommodation and facilities, I / we agree with you as follows :-

1. That you may hold all securities belonging to me / us (which may now be in your possession or which may at any time hereafter come into your possession) and the proceeds thereof respectively not only for the specific advance made thereon but also as collateral security for any other monies now due or which may at any time be due from me / us to you, whether singly or jointly with another or others.

2. That in addition to any general lien or similar right to which you as bankers may be entitled by law, you may at any time without notice to me / us combine or consolidate all or any of my / our accounts with and liabilities to you and set off or transfer any sum standing to the credit of any one or more of such accounts in or towards satisfaction of any of my / our liabilities to you in any other account or in any other respect, whether such liabilities be actual or contingent, primary or collateral and several or joint.

Yours faithfully,

SIGNED AND DELIVERED BY

Name _____

Signature _____

the Borrower withinnamed

DEED OF GUARANTEE

THIS DEED OF GUARANTEE is made at _____ on this _____ day of _____ 20_____ ("Deed")

BY

The Guarantor/s whose name/s and address/ies is/are stated in the Schedule, hereinafter called "the Guarantor" (which expression shall unless the context otherwise requires, include his / her / their heirs, executors, administrators, successors, legal representatives and permitted assigns of each one of them.

In favour of DCB BANK LIMITED, a banking company incorporated under the Companies Act, 1956 (CIN: L99999MH1995PLC089008) and deemed to exist within the meaning of Companies Act, 2013, and having its Registered Office at 6th Floor, Tower A, Peninsula Business Park, Senapati Bapat Marg, Lower Parel, Mumbai - 400013, (hereinafter referred to as the "Bank" which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns).

WHEREAS in terms of the Loan Agreement dated _____ (the "Loan Agreement") executed by _____ (herein under referred to as "the Borrower", which expression shall unless repugnant to the context or meaning thereof be deemed to include his/her/their heirs, executors, administrators, successors, legal representatives and permitted assigns of each one of them) with DCB Bank Limited (the "Bank") the Bank has agreed to finance the Borrower for the purpose of _____ more particularly mentioned therein ("Purpose") and such other facilities as may be agreed upon from time to time between the Bank and Borrower for sums not exceeding in the aggregate of ₹ _____/- (Rupees _____ _____ Only) (hereinafter referred to as the "Loan") on the terms and conditions specified and contained therein.

AND WHEREAS one of the conditions specified and contained in the Loan Agreement is that the Borrower shall procure and furnish to the Bank a guarantor guaranteeing due payment by the Borrower of the said sum of ₹ _____/- (Rupees _____ Only) (hereinafter for the sake of brevity referred to as "the Guaranteed Sum") together with interest, costs charges, expenses and/or other monies due to the Bank in respect of or under the Loan or any of them on demand by the Bank.

AND WHEREAS the Guarantor at the request of the Borrower and in consideration of the Bank having agreed to grant or granted at the request of the Guarantor the Loan to the Borrower, have agreed to execute the guarantee in favour of the Bank on the terms and in the manner hereinafter appearing.

_____
Guarantor

NOW THIS DEED WITNESSETH that in consideration of the above premises it is hereby covenanted and agreed (all the Guarantor/s covenanting and agreeing jointly and severally) as follows:

1. If at any time default shall be made by the Borrower in payment of the Guaranteed Sum together with interest, costs, charges, expenses and / or other monies for the time being due to the Bank in respect of and / or under the Loan or any of them the Guarantor/s shall forthwith on demand, without any demur or protest, irrevocably and unconditionally pay to the Bank the whole of such Guaranteed Sum together with interest, costs, charges, expenses and / or any other monies as may be then due to the Bank in respect of the Loan and shall indemnify and keep indemnified and hold harmless the Bank against all losses of the Guaranteed Sum, interest or other monies due and all costs, charges and expenses whatsoever which the Bank may incur by reason of any default on the part of the Borrower.
2. The Guarantor/s agree and confirm that interest shall be charged on the outstanding in the account(s) opened in respect of the aforesaid Loan at such rate(s) as may be determined by the Bank from time to time. Interest shall be calculated respectively on the daily balance of such account(s) and be debited thereto on the last working day of the month or quarter according to the practice of the Bank. The Bank shall also be entitled to charge at its own discretion such enhanced rates of interest on the account (so either on the entire outstanding or on a portion thereof as it may fix for any irregularity and the charging of such enhanced rate of interest shall be without prejudice to the Bank's other rights and remedies).
3. The Bank shall have the fullest liberty without affecting this guarantee to vary the amounts of the individual limits of the Loan as may be agreed upon from time to time between the Bank and the Borrower subject to the aggregate thereof not exceeding the Guaranteed Sum and / or to postpone for any time or from time to time enforce or forbear to enforce any remedies or securities available to the Bank at its liberty with reference to the matters aforesaid or any of them or by reason for time being given to the Borrower or of any other forbearance act or omission on the part of the Bank or any other indulgence by the Bank to the Borrower or by any other matters or things whatsoever which under the law relating to sureties would but for this provision have the effect of so releasing the guarantees.
4. As the Loan have been further secured by mortgage and /or hypothecation and / or pledge of the Asset under separate security documents (including but not limited to Loan Agreement) executed by the Borrower with the Bank which security documents would contain stipulations as to insurance assignment and delivery of insurance policy to the Bank, the margin or value of properties to be maintained and other matters the Guarantor/s agree that no failure in requiring or obtaining such security/ies or in the observance or performance of any of the stipulations or terms of the said security documents and no default of the Bank in requiring or enforcing the observance or performance of any of the said stipulations or terms shall have the effect of releasing or discharging or in any manner affecting the liability of the Guarantor/s under these presents.
5. The Bank shall be at liberty to take in addition to the subsisting security/ies any other securities for the Loan or any of them or any part thereof and to release or forbear to enforce all or any of the remedies upon or under such security/ies and any collateral security or securities now held by the Bank and that no such release or forbearance as aforesaid shall have the effect of releasing or discharging or in any manner affecting the liability of the Guarantor/s under the Guarantee and that the Guarantor/s shall have no right to the benefit of the said security/ies that may be held by the Bank until the claims of the Bank against the Borrower in respect of the Loan and of all (if any) other claims fully satisfied and then in so far only as such security/ies shall not have been exhausted for the purpose of realising the amount of the Bank's claims and rateably onlywith other Guarantor/s or other persons (if any) entitled to the benefit of such security/ies respectively.
6. The guarantee herein contained shall be enforceable against the Guarantor/s notwithstanding the securities aforesaid or any of them or any other collateral securities that the Bank may have obtained or may obtain from the Borrower or any other person at the time when proceedings are taken against the Guarantor/s hereunder be outstanding and / or not enforced and / or remain unrealised.
7. In order to give effect to the guarantee herein contained the Bank shall be entitled to act as if the Guarantor/s were principal sebtor/s to the Bank for all the payments guaranteed by them as aforesaid to the Bank.
8. The Guarantee herein contained is a continuing one for all amounts advanced by the Bank to the Borrower in respect of or under the Loan as also for all interest costs and other monies which may from time to time become due and remain unpaid to the Bank thereunder and shall not be determined or in any way be effected by any account or accounts opened or to be opened by the Bank becoming nil or coming into credit at any time or from time to time or by reason of the said account or accounts being closed and fresh account or accounts being opened in respect of fresh facilities being granted within the overall limit sanctioned to the Borrower.
9. Notwithstanding the Bank's rights under any security which the Bank may have obtained or may obtain the Bank shall have the fullest liberty to call upon the Guarantor/s to pay the Guaranteed Sum together with interest as well as costs, charges and expenses and / or other monies for the time being due to the Bank in respect of and / or under the Loan or any of them without requiring the Bank to realise from the Borrower the amount due to the Bank in respect of the Loan and / or requiring the Bank to enforce any remedies or security/ies available to the Bank.
10. The guarantee herein contained shall not be determined or in any way prejudiced by any absorption of or by the Bank or by any amalgamation thereof or therewith but shall enure and be available for any by the absorbing or amalgamated Bank orconcern.
11. The guarantee shall be irrevocable and enforceable against the Guarantor/s not withstanding any dispute between the Bank and the Borrower.
12. The guarantor/s affirm and confirm and declare that any balance confirmation and / or acknowledgement of debt and / or admission of liability given or promised or part payment made by the Borrower or the authorised agents of the Borrower to the Bank shall be deemed to have been made and / or given by or on behalf of the Guarantor/s themselves and shall be binding upon each of them.
13. The Guarantor/s shall forthwith, on demand made by the Bank, deposit with the Bank such sum of security/ies as the Bank may from time to time specify for the due fulfillment of their obligations under the Guarantee and any security/ies deposited with the Bank may be sold by the Bank after giving the guarantor/s a reasonable notice of sale and the said sum or the proceeds of sale of the security/ies may be appropriated by the Bank in or towards satisfaction of the said obligations and any liability arising out of non-fulfillment thereof by the Guarantor/s.

☒ _____

Guarantor

14. The Guarantor/s hereby agree that notwithstanding any variation made in terms of the Loan Agreement and / or any of the said security documents including reallocation / interchange of the individual limits within the Guaranteed Sum, variation in the rate of interest, extension of the date for payment of the instalments, if any, composition made between the Bank and the Borrower to give time to or not to sue the Borrower, or the Bank parting with any of the securities given by the Borrower, the Guarantor/s shall not be released or discharged of their obligation under this guarantee provided that in the event of any such variation or composition or agreement the liability of the Guarantor/s shall notwithstanding anything herein contained be deemed to have accrued and the Guarantor/s shall be deemed to have become liable hereunder on the date or dates on which the Borrower shall become liable to pay the amount / amounts due under the Loan Agreement and/or any of the said security/ies documents as a result of such variation or composition or agreement.

15. The Guarantor/s hereby agree and confirm that the Bank shall be entitled to adjust or set off all monies held by the Bank to the credit of or for the benefit of the Guarantor/s on account or otherwise howsoever towards the discharge and satisfaction of the liability under these presents.

16. The Bank may recover from the Guarantor/s to the extent herein before mentioned notwithstanding that the principal Borrower or his agents, partners, directors or officers may have exceeded his or their powers or that the arrangements with the Bank may have been ultra vires and without being bound to enforce its claim against the principal Borrower or any other person or other security/ies held by the Bank. The Bank shall not be bound to enquire into powers of the principal Borrower or his agents or partners, directors or officers purporting to act on behalf of the principal and all moneys dues or liabilities incurred shall be deemed to form part of the present guarantee.

17. The Guarantor/s agree that notwithstanding the Bank for any reason losing and / or parting with any of the securities given by the Borrower the Guarantor/s shall not be released or discharged of their obligations under this guarantee and in the event of the Bank so losing or parting with the security/ies, the Guarantor/s shall be deemed to have consented to or acquiesced in the same.

18. The Guarantor/s agree that if the Borrower being an individual becomes insolvent or being a company enters into liquidation or winding up (whether compulsory or voluntary) or if the management of the undertaking of the Borrower is taken over under any law or if the Borrower and / or the Borrower and/or the undertaking of the Borrower is nationalised under any law or make any arrangement or composition with creditors the Bank may (notwithstanding payment to the Bank by the Guarantor/s or any other person of the whole or any part of the amount hereby secured) rank as creditor and prove against the estate of the Borrower for the full amount of the Bank's claim against the Borrower or agree to and accept any composition in respect thereof and the Bank may receive and retain the whole of the dividends composition or other payments thereon to the exclusion of all the rights of the Guarantor/s in competition with the Bank until the Bank's all claims are fully satisfied and the Guarantor/s will not be paying off the amounts payable by them or otherwise prove or claim against the estate of the Borrower until the whole of the Bank's claims against the Borrower have been satisfied and the Bank may enforce and recover payment from the Guarantor/s of the full amount payable by the Guarantor/s notwithstanding any such proof or composition as aforesaid. On the happening of any of the aforesaid events, the Guarantor/s shall forthwith inform the Bank in writing for the same.

19. The Guarantee hereby given is independent and distant from any security/ies that the Bank has taken or may take in any manner whatsoever whether it be by way of hypothecation, pledge and / or mortgage and of any other charge over goods moveable or other assets and / or any other properties moveable or immoveable and the Guarantor/s have not given this Guarantee upon any understanding, faith or belief that the Bank has taken and / or may hereafter take any or other such security/ies and notwithstanding the provisions of Sections 140 and 141 of the Indian Contract Act, 1872 or other sections of that act or any other law the Guarantor/s will not claim to be discharged to any extent because of the Bank's failure to take any or other such security/ies or in requiring or obtaining any such or other such security/ies or losing for any reason whatsoever including reasons attributable to its default and negligence benefit of any or other such security/ies or any of rights to any or other such security/ies that have been or could have been taken.

20. The Guarantor/s agree that any admission or acknowledgment made in writing signed by the Borrower of the liability or indebtedness of the Borrower or otherwise in relation to the Loan and / or any part payments as may be made by the Borrower towards the Principal Sum hereby guaranteed or any judgement, award or order obtained by the Bank against the Borrower shall be binding on the Guarantor/s and the Guarantor/s accept the correctness of any statement of account that may be served on the Borrower and the same shall be binding and conclusive as against the Guarantor/s also. The Guarantor/s further agree that the Borrower making an acknowledgment or making a payment the Borrower shall in addition to personal capacity be deemed to act as the Guarantor/s' duly authorised agent in that behalf for the purpose of but not limited to Sections 18 and 19 of the Limitation Act,1963.

21. The Guarantor/s' agree that the amount due under or in respect of the Loan and hereby guaranteed shall be payable to the Bank on the Bank's serving the Guarantor/s with a notice requiring payment of the amount and such notice shall be deemed to have been served on the Guarantor/s by actual delivery thereof to the Guarantor/s or by dispatch thereof by Registered Post or Certificate of Posting or by courier or by any other means to the Guarantor/s' address herein given or any other address in India to which the Guarantor/s' may, by written information, give the Bank a request that communication addressed to the Guarantor/s be dispatched. Any notice dispatched by the Bank by Registered Post or by Certificate of Posting or by courier or by any other means to the address to which it is required to be dispatched under this clause shall be deemed to have been duly served on the Guarantor/s four (4) days after the date thereof and shall be sufficient if it is established that such notice, communication or demand was properly addressed and sent.

22. The Guarantor/s confirm that no consideration in any form, including money, was taken/will be taken, in lieu of the personal / corporate guarantee extended/being extended by way of letter of guarantee, for the credit facilities granted / proposed to be granted / continued, to the principal Borrower.

23. The Guarantor/s hereby agree as a pre-condition of the Loan given to the Borrower by the Bank that in case the Guarantor/s refuses to comply with the demand made by the Bank, despite having sufficient means to make payment of the dues, the Guarantor/s would also be treated as a wilful defaulter.

☒ _____

Guarantor

24. The Guarantor/s hereby agree that the Bank has right to share information regarding the principal Borrower / securities / the Guarantor/s with RBI / Banks / CERSAI /Credit Information Companies / Information Utility (IU)/Institutions and/or any statutory body / authority in the normal course of business. This also includes the right to share information on the financial affairs of the principal Borrower and/or Guarantor/s with any other bank/s from whom the principal Borrower and/or Guarantor/s has/have availed/intend to avail any kind of facility – financial or otherwise.

25. The Guarantor/s hereby give specific consent to the Bank for disclosing / submitting the 'financial information' as defined in Section 3 (13) of the Insolvency and Bankruptcy Code, 2016 ('Code' for brief) read with the relevant Regulations / Rules framed under the Code, as amended and in force from time to time and as specified there under from time to time, in respect of the guarantees given, securities created for securing the Loan availed by the Borrower from the Bank, from time to time, to any 'Information Utility' ('IU' for brief) as defined in Section 3 (21) of the Code, in accordance with the relevant Regulations framed under the Code, and directions issued by Reserve Bank of India (RBI) to the banks from time to time and hereby specifically agree to promptly authenticate the financial information submitted by the Bank, as and when requested by the concerned IU.

26. That in case the principal Borrower commits any default in the repayment of the Loan or in repayment of interest thereon or the agreed instalment(s) of the Loan or any of them on the due date/s or commit breach of any of the terms stated herein or in any other document/s executed by them in favour of the Bank, then the Bank and / or Reserve Bank of India (RBI) and /or such other agency authorised by them without prejudice to their other rights will have an unqualified and absolute right to disclose or publish the Guarantor/s names and the name of his/her/their company / firm / unit / its directors / partners / proprietor along with the photograph/s of the respective person/s as defaulter/s with other relevant details like address, job details as deemed fit and appropriate by the Bank and / or RBI and / or such other agency authorised by them in such manner and through such media whether electronic or print as the Bank and /or RBI and /or such other agency authorised by them in their absolute discretion may think fit. The Guarantor/s further agree that such publication made by the Bank and / or RBI and /or such other agency authorised by them will not be challenged by the Guarantor/s on any ground whatsoever nor shall the Bank or RBI or such other Agency authorised by them be held liable and responsible for costs, damages or any other claim because of such publication of the Guarantor/s photograph/s and other details published as stated herein above.

27. MISCELLANEOUS
    a) To give effect to this Deed the Bank may act as though the Guarantor/s were the principal debtors.
    b) This Deed shall enure for the benefit of the Bank's successors and assigns and shall be binding on the Guarantor/s, his/her/their heirs, executors, administrators, legal representatives, successors and permitted assigns of each one of them.

SCHEDULE

Description of the Guarantor: _____

Name of the Guarantor: Mr./Ms. _____

Father's/Husband's Name: Mr./Ms. _____

Address of the Guarantor: _____

SIGNED AND DELIVERED by the withinnamed

_____
Guarantor

Name _____

☒ _____
Guarantor

To,

Date :

DCB Bank Limited

Credit Operations - Non Retail

_____

Re.: Execution of Documents – A/c. Mr./Ms. _____

For Micro Enterprise Loan of Rs. _____/-

I, Mr. _____, working as Portfolio Manager (PM) / Relationship Manager (RM) / Support RM/PM in _____ Department (HRMS No. _____), at_____ hereby certify that the Borrower/s _____ and Guarantor/s has/have signed the relevant documents on _____ in my presence.

_____

(Mr. _____)

DCB BANK